

Tees Tunnel Act 1976

CHAPTER xxxiv

ARRANGEMENT OF SECTIONS

PART I

Section

PRELIMINARY

1. Short title.
2. Interpretation.
3. Incorporation of Railways Clauses Consolidation Act 1845.
4. Application of Part I of Compulsory Purchase Act 1965.

PART II

LAND

5. Power to acquire land.
6. Acquisition of part only of certain properties.
7. Temporary possession of land for works.
8. Compulsory acquisition of easements or rights in or over land.
9. Mining or brining.

Section

10. Correction of errors in deposited plan and book of reference.
11. Power to reinstate owners or occupiers of property.
12. Disregard of recent improvements and interests.

PART III

CONSTRUCTION OF WORKS

13. Power to construct works.
14. Power to deviate.
15. Subsidiary works.
16. Subsidiary works affecting river.
17. Temporary closing of river in connection with works.
18. Period for completion of works.
19. Tidal works not to be executed without approval of Secretary of State.
20. Survey of tidal works.
21. Cables, pipes or wires under or over tidal waters or tidal land.
22. Permanent stopping up of streets without providing substitutes.
23. Temporary stoppage of streets, streams and watercourses.
24. Underpinning of houses and buildings near works.
25. Power to make topographical and soil surveys.
26. Power to alter sewers and divert, etc., drains.
27. Alteration of position of water, gas and other pipes.
28. Power to pump water and use sewers for removing water.
29. Dredging.
30. Power to sell materials.
31. Lights on tidal works during construction.
32. Posts or marks to show limits of tunnel.
33. Tunnel to be a public highway.
34. Restriction on use of tunnel.
35. Power to prevent access to or egress from tunnel approaches.
36. Closing of works.
37. Restrictions as to landing or loading place.
38. No sewers, mains or pipes to be laid in tunnel or tunnel approaches.
39. Application of Public Utilities Street Works Act 1950.
40. Abatement of works abandoned or decayed.
41. Provision against danger to navigation.
42. Obstruction of works.

PART IV

FINANCE

43. Power to borrow.
44. Suspension of payments into sinking fund.

PART V

Section TOLLS AND CHARGES

- 45. Power to take tolls.
- 46. List of tolls to be exhibited.
- 47. Regulations as to payment of tolls and charges.
- 48. Tickets.
- 49. Power to stop persons refusing to pay tolls.
- 50. Power to compound for the payment of tolls.
- 51. Penalties for evasion of tolls.
- 52. Power to provide toll-houses, etc.
- 53. Exemption from tolls.

PART VI

MISCELLANEOUS AND GENERAL

- 54. Protective provisions.
- 55. Provision and operation of services for transporting cyclists through tunnel.
- 56. Action by port authority to protect tunnel.
- 57. Byelaws.
- 58. Documents.
- 59. Local inquiries.
- 60. Defence available to persons charged with certain offences.
- 61. Recovery of penalties, etc.
- 62. Judges and justices not to be disqualified.
- 63. Penalty for obstructing execution of Act.
- 64. Arbitration.
- 65. Undertaking to be exempt from rates.
- 66. Saving for Coast Protection Act 1949.
- 67. Saving for port authority.
- 68. Saving for Trinity House.
- 69. Crown rights.

SCHEDULES:

Schedule 1—Streets which may be stopped up.

Schedule 2—Protective provisions.

Schedule 3—Adaptation of Part I of the Compulsory Purchase Act 1965.

ELIZABETH II



1976 CHAPTER xxxiv

An Act to authorise the construction of a tunnel for vehicular traffic under the river Tees between the borough of Langbaugh and the borough of Stockton-on-Tees in the county of Cleveland and approaches to the tunnel; and for connected purposes. [15th November 1976]

WHEREAS—

(1) The construction of a tunnel for vehicular traffic under the river Tees between the borough of Langbaugh and the borough of Stockton-on-Tees in the county of Cleveland and approaches to the tunnel would be of public and local advantage and it is expedient that the county council of Cleveland should be empowered to construct, maintain and operate the tunnel and other works by this Act authorised and to acquire and use lands and easements and other rights and interests in land for the purposes of or in connection with those works:

(2) It is expedient to confer upon the county council of Cleveland the power to demand and take tolls in respect of the user of the tunnel in accordance with the provisions of this Act:

(3) It is expedient that the other powers in this Act contained should be conferred and that the other provisions in this Act be enacted:

(4) Estimates have been prepared for the purposes hereinafter mentioned and are as follows:—

	£
For the acquisition of land, easements and other rights and interests in land	500,000
For the construction of the tunnel and approaches thereto authorised by this Act	21,800,000
	£22,300,000

(5) The works included in those estimates are permanent works and it is expedient that the cost of carrying out those works should be spread over a term of years:

(6) A plan and sections showing the lines or situations and levels of the works to be constructed under the powers of this Act and a book of reference to such plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the land which may be acquired or used for the purposes of the said works or for other purposes of this Act have been duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the chief executive of the county council of Cleveland, which plan, sections and book of reference are respectively referred to in this Act as the deposited plan, the deposited sections and the deposited book of reference:

(7) The objects of this Act cannot be effected without the authority of Parliament:

1972 c. 70. (8) In relation to the promotion of the Bill for this Act the requirements of section 239 of the Local Government Act 1972 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title.

1. This Act may be cited as the Tees Tunnel Act 1976.

2.—(1) In this Act, the several words and expressions to which meanings are assigned by the enactments wholly or partly incorporated with this Act by section 3 (Incorporation of Railways Clauses Consolidation Act 1845) of this Act shall, subject to the provisions of that section, have the same respective meanings unless there be something in the subject or context repugnant to such construction.

PART I
—cont.

Interpretation.
1845 c. 20.

(2) In this Act, unless the subject or context otherwise requires—

“ bicycles ” includes tricycles;

“ Council ” means the county council of Cleveland;

“ daily fine ” means a fine for each day on which an offence is continued after conviction thereof;

“ electricity board ” means the North Eastern Electricity Board;

“ generating board ” means the Central Electricity Generating Board;

“ land ” means any corporeal hereditament and includes a building or any interest or right in or over land, land covered by water and any right to water;

“ limits of deviation ” means the limits of deviation shown on the deposited plan;

“ officer ” includes agent;

“ port authority ” means the Tees and Hartlepool Port Authority;

“ railways board ” means the British Railways Board;

“ river ” means the river Tees;

“ street ” has the meaning assigned to that term in the Highways Act 1959; 1959 c. 25.

“ telegraphic line ” has the same meaning as in the Telegraph Act 1878; 1878 c. 76.

“ tidal work ” means any work authorised by this Act to be executed on, under or over tidal water or tidal lands below the level of mean high-water springs;

“ tribunal ” means the Lands Tribunal;

“ tunnel ” means the tunnel under the river authorised by this Act together with so much of the highways forming the approaches to the tunnel as lie between the line A—B shown on the deposited plan and drawn straight across the northern such approach and the line C—D so shown and drawn straight across the southern such approach, the said lines being indicated by posts and marks in accordance with section 32 (Posts or marks to show limits of tunnel) of this Act;

PART I
—cont.

“tunnel approaches” means so much of the highway passing through the tunnel as lies between the A.175 Middlesbrough Road, South Bank in the borough of Langbaugh and the A.178 Seaton Carew Road in the borough of Stockton-on-Tees but excluding—

(i) so much of the said highway as is comprised in the tunnel;

(ii) any part of the roundabouts forming the junctions between that highway and the said roads;

“tunnel undertaking” means the works and includes all the land, works, erections, appliances, cash, investments, stocks, stores and other real and personal property, assets, and effects, rights, powers, privileges, liabilities and obligations for the time being held or used by the Council for the purposes of or in relation to the works or to which they are for the time being subject for or in relation to the works;

“water authority” means the Northumbrian Water Authority;

“works” means the works authorised by section 13 (Power to construct works) of this Act together with the works (including any tidal work) subsidiary or incidental thereto authorised by this Act.

(3) Any reference in this Act to an enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment including this Act.

(4) Where in this Act any distance or length is stated, the reference to that distance or length shall be construed as if the words “or thereabouts” were inserted after such distance or length.

Incorporation
of Railways
Clauses
Consolidation
Act 1845.
1845 c. 20.

3.—(1) The provisions of the Railways Clauses Consolidation Act 1845, with respect to the temporary occupation of land near the railway during the construction thereof, so far as the same are applicable for the purposes of and are not inconsistent with, or varied by, the provisions of this Act, are hereby incorporated with and form part of this Act and this Act shall be deemed to be the special Act for the purposes of the incorporated provisions.

(2) In the construction, for the purposes of this Act, of the provisions of the said Act of 1845—

the expression “the company” shall mean the Council;

the expression “the railway” shall mean the works; and

the expression “the centre of the railway” shall mean the centre line of any of the works.

4.—(1) Part I of the Compulsory Purchase Act 1965 (except section 4, subsection (5) of section 24, section 27 and paragraph 3 (3) of Schedule 3 thereof), in so far as it is applicable for the purposes of this Act and is not inconsistent with the provisions thereof, shall apply to the compulsory acquisition of land under this Act as it applies to a compulsory purchase to which Schedule I to the Acquisition of Land (Authorisation Procedure) Act 1946 applies and as if this Act were a compulsory purchase order under the said Act of 1946.

PART I
—cont.

Application
of Part I of
Compulsory
Purchase Act
1965.
1965 c. 56.
1946 c. 49.

(2) In subsection (1) of section 11 of the Compulsory Purchase Act 1965 (which empowers the acquiring authority to enter on and take possession of land the subject of a notice to treat after giving not less than fourteen days' notice) as so applied, for the words "fourteen days" there shall be substituted the words "three months".

(3) The Lands Clauses Consolidation Act 1845 shall not apply to the acquisition of land under this Act.

PART II

LAND

5.—(1) Subject to the provisions of this Act the Council may enter upon, take and use such of the land delineated on the deposited plan and described in the deposited book of reference as they may require for the purposes of the works or for any purpose connected with or ancillary thereto.

Power to
acquire land.

(2) Subject to the provisions of this Act, the Council may enter upon, use and appropriate so much of the subsoil and under-surface of any public street, road, footway or place delineated on the deposited plan and described in the deposited book of reference as shall be necessary for the purposes of the works without being required to purchase the same or any easement therein or thereunder or to make any payment therefor.

6.—(1) Where a copy of this section is endorsed on, or annexed to, a notice to treat served under the Compulsory Purchase Act 1965 as applied by this Act the following provisions of this section shall apply to the land subject to the notice instead of section 8 (1) of that Act.

Acquisition
of part only
of certain
properties.

(2) Where the land subject to the notice is part only of a house, building or factory, or part only of land consisting of a house, together with any park or garden belonging thereto, then, if the person on whom the notice is served, within twenty-one days after the day on which the notice is served on him, serves on the Council a counter-notice objecting to the sale of the part and

PART II
—cont.

stating that he is willing and able to sell the whole (hereinafter in this section referred to as “the land subject to the counter-notice”), the question whether he shall be required to sell the part shall, unless the Council agree to take the land subject to the counter-notice, be referred to the tribunal.

(3) If the said person does not serve such a counter-notice as aforesaid within twenty-one days after the day on which the notice to treat is served on him, or if on such a reference to the tribunal the tribunal determine that the part subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice or, in the case of part of land consisting of a house, together with a park or garden belonging thereto, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house, the said person shall be required to sell the part.

(4) If on such a reference to the tribunal, the tribunal determine that part only of the land subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice or, as the case may be, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house, the notice to treat shall be deemed to be a notice to treat for that part.

(5) If on such a reference to the tribunal, the tribunal determine that the land subject to the notice to treat cannot be taken without material detriment to the remainder of the land subject to the counter-notice but that the material detriment is confined to a part of the land subject to the counter-notice, the notice to treat shall be deemed to be a notice to treat for the land to which the material detriment is confined in addition to the land already subject to the notice, whether or not the additional land is land which the Council are authorised to acquire compulsorily under this Act.

(6) If the Council agree to take the land subject to the counter-notice, or if the tribunal determine that—

- (a) none of the land subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice or, as the case may be, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house; and
- (b) the material detriment is not confined to a part of the land subject to the counter-notice;

the notice to treat shall be deemed to be a notice to treat for the land subject to the counter-notice, whether or not the whole of that land is land which the Council are authorised to acquire compulsorily under this Act.

PART II
—cont.

(7) In any case where, by virtue of a determination by the tribunal under subsection (4), (5) or (6) of this section, a notice to treat is deemed to be a notice to treat for part of the land specified in the notice or for more land than is specified in the notice, the Council may, within six weeks after the tribunal make their determination, withdraw the notice to treat, and if they do so shall pay to the said person compensation for any loss or expense occasioned to him by the giving and withdrawal of the notice, to be determined in default of agreement by the tribunal.

(8) Where a person is required under this section to sell part only of a house, building or factory, or of land consisting of a house, together with any park or garden belonging thereto, the Council shall pay him compensation for any loss sustained by him due to the severance of that part in addition to the value of his interest therein.

7.—(1) The Council may, to facilitate the construction and operation of the works, enter upon and take possession temporarily of so much of the land delineated on the deposited plan and described in the deposited book of reference as is described in subsection (5) of this section after giving to the owner thereof not less than twenty-eight days' previous notice in writing specifying the part of the land of which possession is so required and may carry out therein such works as may be required for the aforesaid purpose without being obliged or compellable to acquire any interest in such land in respect of such temporary possession except as provided in subsection (2) of this section:

Temporary
possession of
land for
works.

Provided that, subject to subsection (2) of this section—

- (i) the Council shall not, without the agreement of the owner thereof, remain in possession of any such land under the powers of this section after a period of six years from the date of entry thereon;
- (ii) the Council shall compensate the owner of such land for any loss or damage which may result to him by reason of the exercise of the powers of this section in relation to such land; and
- (iii) nothing in this section shall relieve the Council from liability to compensate under section 6 or section 43 of the Railways Clauses Consolidation Act 1845 or 1845 c. 20. section 10 (2) of the Compulsory Purchase Act 1965 1965 c. 56. (as applied by this Act) or under any other enactment,

PART II
—cont.

in respect of loss or damage arising from the execution of any works, other than loss or damage for which compensation is payable under proviso (ii) to this subsection.

(2) (a) If the owner of a part of any land in respect of which notice is given under subsection (1) of this section by notice in writing served on the Council within fifty-six days after the date on which the first-mentioned notice is given to him, claims that entry upon and occupation of, and the carrying out of works in, that part of the land by the Council in pursuance of the first-mentioned notice will cause material detriment to his interest in the land, and states that he is willing and able to sell his interest in the land, the Council may be required by the owner serving notice to purchase his interest in the land in accordance with the provisions of this subsection.

(b) Unless within fifty-six days after the date on which notice of a claim is served on them under paragraph (a) of this subsection, the Council serve on the claimant a counter-notice objecting to the claim and stating the grounds of objection they shall be deemed to have accepted the claim.

(c) Where a counter-notice objecting to a claim is so served by the Council, the claimant may, by a further notice in writing served on the Council within fifty-six days after the date of the service of the counter-notice, require the objection to be referred to the tribunal.

(d) On any such reference the tribunal shall not uphold the claim unless the objection is withdrawn or they determine that the part of the land to which the notice given under subsection (1) of this section relates cannot be entered and occupied by the Council, and works carried out by them in accordance with that notice without material detriment to the interest of the claimant in that land.

(e) Where a claim under this section is accepted by the Council or upheld by the tribunal the Council shall be deemed to have served notice to treat in respect of the claimant's interest in the land to which the notice given under subsection (1) of this section relates and to have entered into possession of that land in pursuance of such notice to treat on the date on which they took possession of any part of that land under subsection (1) of this section.

(f) Nothing in this subsection or anything done thereunder shall affect the right of the Council to enter upon and take possession of land in pursuance of a notice given under subsection (1) of this section and to carry out works in that land.

(3) Upon giving up possession of any land upon which entry is obtained under this section, not being land in respect of which they are entitled to remain in possession in accordance with the

provisions of subsection (2) (e) of this section, the Council shall remove all works and structures erected by them therein or thereon and shall reinstate the land to the reasonable satisfaction of the owner thereof.

PART II
—cont.

(4) Every case of compensation to be ascertained under this section shall be ascertained under the provisions of the Land Compensation Act 1961.

1961 c. 33.

(5) The powers conferred on the Council by this section shall be exercisable only in relation to the land described below, that is to say—

- (a) rough land in the borough of Langbaugh numbered 21 on the deposited plan;
- (b) reclaimed land and storage land in the borough of Langbaugh numbered 23 on the deposited plan;
- (c) waste industrial land, disused railway tracks, derelict jetties, wharfs and buildings, half railway bridge in the borough of Langbaugh numbered 24 on the deposited plan;
- (d) waste industrial land, slag heaps, access roads and railway tracks in the borough of Stockton-on-Tees numbered 2 on the deposited plan;
- (e) industrial land, railway sidings, drain and access track in the borough of Stockton-on-Tees numbered 4 on the deposited plan.

(6) In exercising the powers of this section to enter upon, take or use the land delineated on the deposited plan and described in the deposited book of reference and therein numbered 21 in the borough of Langbaugh, the Council shall comply with all reasonable conditions imposed by the railways board with regard to the entry on to, taking or use of that land.

8.—(1) Subject to the provisions of this Act, the Council may, for the purposes of the works or for any purpose connected with or ancillary thereto, purchase compulsorily such easements or other rights (being easements or rights not in existence at the passing of this Act) as they may require in or over any of the land which may be acquired under section 5 (Power to acquire land) of this Act instead of acquiring that land under that section.

Compulsory acquisition of easements or rights in or over land.

(2) The Compulsory Purchase Act 1965, as applied by this Act, shall have effect with the modifications necessary to make it apply to the compulsory purchase of easements or rights under subsection (1) of this section as it applies to the compulsory purchase of land so that, in appropriate contexts, references in the Act to land are read as referring, or as including references, to the

1965 c. 56.

PART II
—cont.

easements or rights or to the land in or over which the easements or rights are to be enjoyed or exercisable (as the case may be), according to the requirements of the particular context.

(3) Without prejudice to the generality of subsection (2) of this section, in relation to the purchase of easements or rights in pursuance of subsection (1) of this section—

1965 c. 56.

(a) Part I of the Compulsory Purchase Act 1965 shall have effect with the modification specified in Schedule 3 (Adaptation of Part I of the Compulsory Purchase Act 1965) to this Act;

(b) the enactments relating to compensation for the compulsory purchase of land shall apply with the necessary modifications as they apply to such compensation.

Mining or
brining.

9.—(1) Not less than fifty-six days before it is intended to carry out any mining or brining operations at any depth in land under or within 100 metres (measured laterally) on either side of the tunnel or one or both of the tunnel approaches, the owners, lessees and occupiers of the mineral rights in the land shall give notice to the Council of their intention so to do and in giving notice to the Council the owners, lessees and occupiers shall indicate the amount of subsidence which they estimate will occur as a result of those operations and also the area over which the subsidence is expected to take place.

(2) If, in the opinion of the Council, any of the operations in respect of which a notice under subsection (1) of this section has been served are likely to be detrimental to the safe and proper maintenance of the tunnel or one or both of the tunnel approaches, the Council may within twenty-eight days of the date of service of the notice, serve a counter-notice on the owners, lessees and occupiers in question prohibiting them from carrying out those operations and the counter-notice shall be binding on them, their successors in title and those deriving title under them.

1961 c. 33.

(3) Where the Council serve a counter-notice under subsection (2) of this section, compensation shall be payable by the Council to the owners, lessees and occupiers upon whom the counter-notice is served and shall be ascertained in accordance with the provisions of the Land Compensation Act 1961.

1975 c. 76.

(4) A prohibition contained in a counter-notice served under subsection (2) of this section shall be a local land charge within the meaning of section 1 of the Local Land Charges Act 1975 and shall be registered as such in the appropriate local land charges register.

(5) This section shall not apply to the digging, excavation or carrying away of minerals by the railways board in connection with the construction, alteration, maintenance or repair of any

railways of the railways board or any works connected therewith for the maintenance or operation of which the railways board are responsible.

PART II
—cont.

10.—(1) If the deposited plan or the deposited book of reference are inaccurate in their description of any land, or in their statement or description of the ownership or occupation of any land, the Council, after giving not less than ten days' notice to the owner, lessee and occupier of the land in question, may apply to the county court having jurisdiction in the place where the land is situated for the correction thereof.

Correction of errors in deposited plan and book of reference.

(2) If on any such application it appears to the court that the misstatement or wrong description arose from mistake, the court shall certify the fact accordingly and shall in the certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments, and a copy thereof in the Private Bill Office of the House of Commons and with the chief executives of the Council, the council for the borough of Langbaugh and the council for the borough of Stockton-on-Tees respectively, and thereupon the deposited plan and the deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Council to take the land and execute the works in accordance with the certificate.

(4) A person with whom a copy of the certificate is deposited under this section shall keep it with the other documents to which it relates.

11.—(1) The Council may enter into and carry into effect an agreement or arrangement with the owner or occupier of any land acquired, or to be acquired, under this Act with respect to his reinstatement.

Power to reinstate owners or occupiers of property.

(2) Any such agreement may provide for the exchange of land and for that purpose the Council may pay or receive money for equality of exchange.

12. In determining any question of disputed compensation under the Compulsory Purchase Act 1965, as applied by this Act, the tribunal shall not take into account any interest created in land, or any enhancement of the value of any interest in land by reason of any building erected, work done or improvement or alteration made, whether on the land acquired or on the land in relation to which easements or rights have been acquired or on any other land with which the claimant is, or was at the time of the erection, doing or making of the building, works, improvement or alteration, directly or indirectly concerned, if the tribunal is satisfied that the creation of the interest, the erection of the building, the doing of the work, the making of the improvement

Disregard of recent improvements and interests.
1965 c. 56.

PART II
—cont.

or the alteration, as the case may be, was not reasonably necessary and was undertaken with a view to obtaining compensation or increased compensation.

PART III

CONSTRUCTION OF WORKS

Power to
construct
works.

13. Subject to the provisions of this Act, the Council may, in the lines or situations shown on the deposited plan and according to the levels shown on the deposited sections, make and maintain the following works, with all necessary or convenient works connected therewith:—

Work No. 1—A twin tube tunnel under the river and under the railway of the railways board (Darlington-Saltburn line) and, to the extent that the tunnel is under the river, a layer of rocks laid over and near it, with approach roads at both ends of the tunnel commencing in the borough of Langbaugh by a junction with the A.175 Middlesbrough Road, South Bank, and terminating in the borough of Stockton-on-Tees by a junction with the A.178 Seaton Carew Road, with a bridge carrying the northernmost of the said approach roads over the railway of the railways board (Greatham Creek Branch).

Work No. 2—A widening of the dredged channel of the river in the borough of Stockton-on-Tees, 1,625 metres in length, commencing at reference point NZ51422103 and terminating at reference point NZ52622209.

Power to
deviate.

14. In executing the works the Council may deviate laterally from the lines or situations thereof to any extent within the limits of deviation relating thereto respectively and vertically from the levels thereof defined on the deposited sections to any extent not exceeding 10 metres upwards and to any extent downwards:

Provided that in the execution of so much of the works as is situated under the bed of the river the Council shall not, without the consent of the Secretary of State and the port authority, deviate upwards to an extent exceeding 0.3 metres.

Subsidiary
works.

15. Subject to the provisions of this Act the Council may as part of the works execute and do any of the following works or things within the limits of deviation marked on the deposited plan:—

- (a) construct, maintain and operate all such approaches, bridges, subways, roundabouts, lifts, stairs, escalators, ramps, passages, means of ingress or egress, shafts, stagings, buildings, temporary fabrication facilities, pumping works, apparatus, plant and machinery as may be necessary or convenient;
- (b) construct, maintain and operate junctions and communications (including the provision of steps or ramps

PART III
—cont.

for the use of persons on foot) with any existing streets intersected, crossed or interfered with by or contiguous to any of the works and widen or alter the line or alter the level of any existing street for the purpose of connecting the same with the works or any of them or with any existing street, or of crossing under or over the same;

- (c) construct, maintain and operate all such embankments, aprons, abutments, retaining walls, wing walls, culverts and other works as may be necessary or convenient for the works;
- (d) execute any works and do any things necessary for the protection of any adjoining land;

together with all necessary or convenient subsidiary and incidental works.

16. Subject to the provisions of this Act—

Subsidiary
works
affecting river.

- (a) the Council may within the limits of deviation for the purpose of or in connection with the works temporarily alter or interfere with the banks, bed and foreshores of the river and construct, maintain and operate within the limits of deviation in the river and in or on the bed, banks and foreshores thereof all such temporary piles, fenders, booms, moorings, dolphins, pontoons, caissons, cofferdams, embankments, aprons, abutments, stagings, piers, wharves, walls, fences, drains, pumping works, stairs, buildings, temporary fabrication facilities and other works as they may deem expedient or necessary;
- (b) the Council may occupy and use temporarily so much of the banks, bed and foreshores of the river as may be required for the purposes referred to in paragraph (a) of this subsection and as lies within the limits of deviation;
- (c) the Council may for the purpose of the construction, maintenance or operation of any of the works moor or anchor temporarily, vessels, barges or other craft in the river.

17.—(1) Notwithstanding anything to the contrary in any other enactment or in any rule of law, the Council may subject to section 67 (Saving for port authority) of and Part 7 (For protection of Tees and Hartlepool Port Authority) of Schedule 2 to this Act, in executing or doing in, on, under or over the river any works or things authorised by or under the provisions of this Act, with the consent of the port authority given subject to such conditions as they think fit or in case of objection by the Council to those conditions as may be settled by arbitration, close the river or any part thereof to navigation:

Temporary
closing of
river in
connection
with works.

PART III
—cont.

Provided that the Council shall so execute or do such works or things as to ensure that at any time no more of the river is so closed than is reasonably necessary in all the circumstances, and the Council shall use their best endeavours to secure that the minimum obstruction, delay or interference is caused to vessels which may be using or intending to use the river and that the minimum interference is caused to persons who may be using or intending to use the river for the purposes of trade or business (including the use of river water for cooling purposes).

(2) Without prejudice to the provisions of section 4 (Application of Part I of Compulsory Purchase Act 1965) of this Act and Part 7 (For protection of Tees and Hartlepool Port Authority) of Schedule 2 to this Act, neither the Council nor the port authority shall be liable for any costs, damages or expenses whatsoever incurred by any person as a result, directly or indirectly, of any closure of the river under subsection (1) of this section.

Period for
completion
of works.

18.—(1) If the works are not completed on or before 1st October, 1986, then as from that date the powers by this Act granted to the Council for making and completing the works shall cease except so far as the same are respectively then completed.

(2) On the application of the Council the Secretary of State may by order extend the period referred to in subsection (1) of this section.

(3) An order under subsection (2) of this section shall be made by statutory instrument and shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Tidal works
not to be
executed
without
approval of
Secretary of
State.

19.—(1) A tidal work shall not be constructed, altered, extended, improved or renewed except in accordance with plans and sections approved by the Secretary of State and subject to any conditions and restrictions imposed by the Secretary of State before the work is begun.

(2) If a tidal work is constructed, altered, extended, improved or renewed in contravention of this section or of any condition or restriction imposed under this section—

(a) the Secretary of State may by notice in writing require the Council at their own expense to remove the tidal work or any part thereof and restore the site thereof to its former condition; and if, on the expiration of thirty days from the date when the notice is served upon the Council they have failed to comply with the requirements of the notice, the Secretary of State may execute the works specified in the notice; or

(b) if it appears to the Secretary of State urgently necessary so to do, he may himself remove the tidal work or part of it and restore the site to its former condition;

and any expenditure incurred by the Secretary of State in so doing shall be recoverable from the Council as a simple contract debt.

PART III
—cont.

20. The Secretary of State may at any time if he deems it expedient order a survey and examination of a tidal work or of the site upon which the Council propose to construct a tidal work, and any expenditure incurred by the Secretary of State in any such survey and examination shall be recoverable from the Council as a simple contract debt.

21. Notwithstanding anything in this Act, any cables, pipes or wires to be laid or placed under the powers contained in this Act under or over tidal waters or tidal lands below the level of mean high-water springs shall be laid or placed at such depth under or such height over tidal waters or tidal lands as the Secretary of State may require.

22.—(1) The Council may stop up the whole or such part or parts, as they may from time to time think fit, of the streets mentioned in Schedule 1 (Streets which may be stopped up) to this Act in so far as they are within the lands shown on the deposited plan and described in the deposited book of reference.

Permanent
stopping up
of streets
without
providing
substitutes.

(2) Where by this section the Council are authorised to stop up a street or portion thereof, such stopping up shall not take place (except as to so much of the street, or portion thereof, authorised to be stopped up as is situated upon, or bounded on both sides by, property of which the Council are in possession) without the consent of the owners, lessees and occupiers of the houses and land abutting on both sides of the street, or portion thereof, as the case may be.

(3) After such stopping up all rights of way over or along the street, or portion thereof, authorised to be stopped up shall be extinguished and the Council may, subject to the provisions of this Act appropriate, without making any payment therefor, and use for the purposes of the tunnel undertaking the site of the street or portion thereof, so stopped up.

(4) Any person who suffers loss by the extinguishment of any private right under this section shall be entitled to be paid by the Council compensation to be determined in case of dispute by the tribunal.

23.—(1) The Council during and for the purpose of the execution of the works may—

(a) temporarily stop up, divert or interfere with any street, stream or watercourse;

Temporary
stoppage of
streets,
streams and
watercourses.

PART III
—cont.

- (b) execute and do all necessary works and things for or in connection with such stopping up, diversion or interference and for keeping any such street open for traffic; and
 - (c) for any reasonable time divert the traffic from any such street and prevent persons using the same.
- (2) The Council shall not exercise the powers of this section—
- (a) as respects any street upon which a service of stage carriages or express carriages is operated, unless not less than forty-eight hours' previous notice is given to the traffic commissioners and to the holders of the road service licence under which that service is authorised; or
 - (b) so as to deprive foot-passengers bona fide going to or from any building or land adjoining the street of reasonable access to the building or land.

Underpinning
of houses and
buildings near
works.

24. The Council at their own costs and charges may, subject as hereinafter provided, underpin or otherwise strengthen any house or building within 35 metres of any of the works and the following provisions shall have effect:—

- (1) At least fourteen days' notice shall (except in case of emergency) be given to the owner, lessee and occupier of the house or building intended to be so underpinned or otherwise strengthened:
- (2) Each such notice shall be served in manner prescribed by section 30 of the Compulsory Purchase Act 1965, as applied by this Act:
- (3) If any owner, lessee or occupier of any such house or building shall, within ten days after the giving of such notice, give a counter-notice in writing that he disputes the necessity of such underpinning or strengthening, the question of the necessity shall be settled by arbitration:
- (4) In any case in which any house or building shall have been underpinned or strengthened under the powers of this section the Council may, from time to time after the completion of such underpinning or strengthening, and during the execution of the work in connection with which such underpinning or strengthening was done, or within five years after the opening for traffic of that work, enter upon and survey such house or building and, after complying with the foregoing provisions of this section, do such further underpinning or strengthening as they may deem necessary or expedient:
- (5) The Council shall be liable to compensate the owner, lessee and occupier of every such house or building for any loss or damage which may result to them by reason of the exercise of the powers granted by this section:

1965 c. 56.

- (6) Nothing in this section nor any dealing with any property in pursuance of this section shall relieve the Council from the liability to compensate under section 10 (2) of the Compulsory Purchase Act 1965, as applied by this Act, or under any other enactment in respect of loss or damage arising from the execution of any works, other than works of underpinning or strengthening authorised by this section: PART III
—cont.
- (7) Every case of compensation to be ascertained under this section shall be ascertained according to the provisions of the Land Compensation Act 1961. 1965 c. 56.
1961 c. 33.

25.—(1) Subject to section 67 (Saving for port authority) of and Part 7 (For protection of Tees and Hartlepool Port Authority) of Schedule 2 to this Act, the Council may, within the limits of deviation, make such topographical or soil surveys or both as they think fit and, for those purposes, may at all reasonable times enter upon any land within those limits: Power to make
topographical
and soil
surveys.

Provided that—

- (i) no land of the railways board shall be entered under this section unless the Council not less than fourteen days before each such entry have given written notice to the railways board; and
- (ii) no other land shall be entered under this section unless the Council not less than seven days before the first entry and not less than twenty-four hours before any subsequent entry have given notice to the owner and occupier of the land.

(2) In making surveys pursuant to subsection (1) of this section, the Council may make trial holes and take samples at such places within the limits of deviation as they may think fit:

Provided that in making such surveys on any land of the railways board the Council shall only make trial bores and take samples at such places as are agreed with, and shall comply with all reasonable conditions imposed by, the railways board.

(3) A person authorised by the Council to enter on land in pursuance of this section shall, if so required before or after entering on the land, produce evidence of his authority to enter.

(4) Where land is damaged in the exercise of the powers conferred by subsection (2) of this section, any person interested in the land may recover from the Council compensation for the damage to be determined in case of dispute by the tribunal, and, so far as compensation is properly to be calculated by reference to the depreciation of the value of his interest in the land, rules 2 to 4 of the rules set out in section 5 of the Land Compensation Act 1961 shall apply.

PART III
—*cont.*

Power to alter
sewers and
divert, etc.,
drains.

26.—(1) Subject to section 67 (Saving for port authority) of and Part 7 (For protection of Tees and Hartlepool Port Authority) of Schedule 2 to this Act, the Council may for the purposes of the works, after consultation with the authority to whom it belongs or by whom it is repairable, raise, lower, divert, alter, remove, arch over or fill up or otherwise interfere with any sewer or drain or part thereof but so that no sewer or drain or part thereof (unless the same becomes unnecessary by reason of the purchase by the Council of the property entitled to the use thereof) shall be interfered with without another sewer or drain being provided in lieu thereof equally serviceable and convenient before the removal or filling up thereof and, when made and completed, any substituted sewer or drain or part thereof shall be under the same jurisdiction, care, management and direction as the existing sewer or drain or part thereof for which it is substituted.

(2) This section shall not apply to any sewer to which Part 5B (For protection of public sewers) of Schedule 2 to this Act applies.

Alteration of
position of
water, gas and
other pipes.

27.—(1) Subject to the provisions of this Act, and after consultation with the authority to whom it belongs or by whom it is repairable, the Council may for the purposes of the works upon the land acquired by them for the purposes of any of the works and also in any street within the limits of deviation, raise, sink or otherwise alter the position of any watercourse, water pipe or gas pipe belonging to or connected with any house or building and also any main pipe or apparatus laid down or used by any company, authority or person for carrying a supply of water or water for hydraulic power or gas and also any pipe, tube, wire or apparatus laid down or placed for telegraphic, postal or other purposes or for supplying electricity (all of which mains, pipes, tubes, wires and apparatus are in this section included in the expression “apparatus”) and may remove any other obstruction, making proper substituted works during any alteration and causing as little detriment and inconvenience as circumstances admit and making reasonable compensation to any company, authority or person who suffers damage by any such alteration.

(2) This section shall not apply to any apparatus to which Part 1 (For protection of British Gas Corporation) and Part 5A (For the further protection of the Northumbrian Water Authority, the North Eastern Electricity Board and the Central Electricity Generating Board) of Schedule 2 to this Act applies.

Power to
pump water
and use sewers
for removing
water.

28.—(1) Subject to the provisions of this Act, the Council may pump any water found by them in the construction, maintenance or operation of any works and may use for the discharge

of any such water the river or any available stream or watercourse or any sewer or drain after consultation with the authority to whom it belongs or by whom it is repairable and may within the limits of deviation for the works lay down, take up and alter conduits, pipes and other works and make convenient connections with the river or any such stream, watercourse, sewer or drain as aforesaid.

PART III
—cont.

(2) In the exercise of the powers of this section the Council shall not—

- (a) abstract water from underground strata except in so far as the abstraction is necessary (in connection with the construction, maintenance or operation of the works) to prevent any interference with any engineering, building or other operations (whether underground or on the surface) or to prevent damage to works resulting from any such operations; or
- (b) discharge any water into any public sewer except with the consent of the water authority (which consent shall not be unreasonably withheld) and subject to such terms and conditions as that authority may reasonably impose, nor shall the Council make any opening into any sewer vested in the water authority except in accordance with plans reasonably approved by and under the superintendence (if given) of the water authority.

(3) (a) Notwithstanding anything in subsection (7) of section 11 of the Rivers (Prevention of Pollution) Act 1951, the discharge of 1951 c. 64. any water under the powers of this section into any stream as defined in that section shall be subject to the provisions of section 2 of that Act.

(b) On the coming into force of section 31 of the Control of Pollution Act 1974, paragraph (a) of this subsection shall cease to 1974 c. 40. have effect and the said section 31 shall apply to, or to the consequence of, a discharge under the powers of this section into any relevant waters for the purposes of the said section 31 as if this section were excluded from the reference to any provision of a local Act mentioned in subsection (2) (b) (ii) of the said section 31 and as if no matter so discharged were trade or sewage effluent or other matter mentioned in subsection (2) (e) of the said section 31.

(4) Without prejudice to Part 5C (For protection of watercourses and land drainage) of Schedule 2 to this Act, in the exercise of their powers under this section the Council shall not, without the consent in writing of the water authority, which consent shall not be unreasonably withheld, damage or interfere with the bed of

PART III
—cont.

1930 c. 44.

any watercourse forming part of a main river of the water authority, or the banks thereof within the meaning of section 81 of the Land Drainage Act 1930.

(5) The Council shall take all such steps as may reasonably be required to secure that any water discharged by them under the powers of this section shall be as far as may be reasonably practicable free from any gravel, soil or other solid substance or matter in suspension.

(6) Any difference arising between the Council and the water authority under this section shall be determined by arbitration.

(7) The powers of this section shall not be exercised so as to damage or injuriously affect any railway or works of the railways board or so as to interfere with or obstruct the free, uninterrupted and safe user of any such railway or the traffic thereon and if any railway or works of the railways board is or are damaged or injuriously affected or any interference or obstruction shall be caused or take place the Council shall on demand pay to the railways board all expenses to which they may be put and compensation for any loss which they may sustain by reason of any such damage, injurious affection, interference or obstruction.

Dredging.

29.—(1) Subject to section 67 (Saving for port authority) of and Part 7 (For protection of Tees and Hartlepool Port Authority) of Schedule 2 to this Act, the Council may, within the limits of deviation, from time to time deepen, dredge, scour, cleanse, alter and improve the bed, shores and channels of the river at, adjoining or near the works for the purpose of constructing or maintaining the works.

1894 c. 60.

(2) The Council may use, appropriate or dispose of the materials (other than wreck within the meaning of Part IX of the Merchant Shipping Act 1894) from time to time dredged by them in exercise of the powers of this section:

Provided that no such materials shall be deposited below the level of mean high-water springs except in such places and in accordance with such restrictions or regulations as may be approved or prescribed by the Secretary of State.

(3) The powers of the Council under this section shall be exercisable subject to section 69 (Crown rights) of this Act, and in particular and without prejudice to that limitation any consent given to the exercise of such powers by the Crown Estate Commissioners on behalf of Her Majesty may be given subject to such restrictions and conditions including the payment by the Council

PART III
—cont.

to the Crown Estate Commissioners of royalties, rents or sums of money in respect of materials raised from any place below the level of high water and sold by the Council under this section or in respect of any place below the level of mean high-water springs upon which materials may be deposited as may be fixed by the Crown Estate Commissioners.

30. The Council may sell or dispose of all matters or things excavated or obtained in the construction, maintenance or operation of the works and all building and other materials of any houses, buildings or structures acquired by them under the powers of this Act and not required for the purposes of this Act, and also all matters or things in, under or upon any street altered by them for the purposes of this Act, and any matters or things obtained in the alteration of or interference with any drain or sewer under the powers of this Act: **Power to sell materials.**

Provided that—

- (1) the Council shall not under the powers of this section sell or dispose of any matter or thing if any person other than the Council before such sale or disposal proves to the satisfaction of the Council that he is the owner thereof;
- (2) if any person after such sale proves to the satisfaction of the Council that he was the owner of the matter or thing so sold the Council shall pay the proceeds to him.

31.—(1) The Council shall, at or near such part of any work constructed by them under the powers of this Act as shall be below the level of mean high-water springs, during the whole time of the construction, alteration, extension, improvement or renewal of the same exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Secretary of State and the port authority or (failing agreement between the Secretary of State and the port authority) the Secretary of State shall from time to time require or approve. **Lights on tidal works during construction.**

(2) If the Council fail to comply in any respect with the provisions of this section they shall be liable to a fine not exceeding twenty pounds.

32. The Council shall on completion of the works on both sides of the tunnel erect and maintain, in or on the tunnel approaches, posts or other marks indicating the position of the lines delimiting the tunnel and the straight lines across each such approach and between those posts or marks shall be deemed to be the limits of the tunnel as so indicated. **Posts or marks to show limits of tunnel.**

PART III
—cont.

Tunnel to be
a public
highway.
Restriction
on use of
tunnel.

33. So soon as Work No. 1 is completed, it shall become a highway maintainable at the public expense and the Council shall be the highway authority therefor.

34.—(1) Notwithstanding anything contained in this Act, it shall not be obligatory upon the Council in constructing the tunnel to make provision therein for the accommodation of pedestrian traffic.

(2) Subject to subsections (3) and (4) of this section and the proviso to subsection (2) of section 57 (Byelaws) of this Act, and without prejudice to the powers conferred on the Council under the Road Traffic Regulation Act 1967, the tunnel shall not be available for use by traffic of any of the following classes, that is to say:—

- (a) persons on foot;
- (b) animals (unless conveyed in a vehicle);
- (c) vehicles other than—
 - (i) mechanically powered vehicles (with or without trailers); or
 - (ii) mechanically powered tricycles or bicycles;

and any collector or other person appointed to receive tolls, may by himself, or with such assistance as he shall think necessary, stop and prevent any person seeking to enter or use the tunnel contrary to the restriction imposed by this subsection.

(3) The Council may at any time and from time to time withdraw or suspend (either permanently or temporarily and whether as respects particular traffic or as respects traffic of all or any of the said classes) the restriction imposed by subsection (2) of this section and such withdrawal or suspension may be made upon and subject to such terms and conditions as the Council may determine including, with the approval of the Secretary of State, conditions which reduce or remit the tolls otherwise payable in respect of traffic to which the withdrawal or suspension relates.

(4) The restriction imposed by subsection (2) of this section shall not apply to—

- (a) any person entering or using the tunnel for or in connection with the performance of work, duties or services relating to the tunnel;
- (b) any member of the naval, military or air forces while on duty in the service of the Crown;
- (c) any police officer acting in the execution of his duty;
- (d) any person entering the tunnel in or on a vehicle who, in consequence of a mechanical or other breakdown of that vehicle or in any other case of emergency, uses the tunnel on foot in a reasonable and proper manner having regard to the circumstances of the case.

1967 c. 76.

(5) Any person who without reasonable excuse, enters, uses or attempts to enter or use, the tunnel in contravention of the restriction imposed by subsection (2) of this section shall be guilty of an offence and liable on summary conviction to a fine not exceeding twenty pounds and in the case of a second or subsequent contravention to a fine not exceeding fifty pounds.

(6) Any withdrawal or suspension effected by the Council under subsection (3) of this section shall be in writing and may be signed on behalf of the Council by the county secretary or by any officer of the Council authorised by them to sign such withdrawals or suspensions or, as the case may be, a particular withdrawal or suspension.

(7) In and for the purposes of this section the expression “ the tunnel ” includes (in addition to the tunnel) the tunnel approaches and in this section references to the tunnel include references to any part of the tunnel or the tunnel approaches, as the case may be.

35.—(1) For the purpose of facilitating the movement of traffic along the tunnel approaches and for securing the safety of the public or otherwise, the Secretary of State, on the application of the Council, may from time to time authorise the Council, at the junctions of any existing street with any of the tunnel approaches, to erect and maintain walls, fences or barriers for the prohibition, prevention or limitation of access to or egress from any of the tunnel approaches by pedestrians, or notices prohibiting or limiting such access or egress.

Power to prevent access to or egress from tunnel approaches.

(2) The Council shall give public notice of the making of an application under subsection (1) of this section in such manner as the Secretary of State may direct.

(3) Any person who without reasonable excuse removes or interferes with any such wall, fence, barrier or notice or fails to comply with any such notice shall be guilty of an offence and liable on summary conviction to a fine not exceeding twenty pounds for each such offence.

36. The Council may, at such times and for such periods as they may think proper, close wholly or in part the works or any of them, or any part thereof, for the purposes of maintaining, repairing, renewing, draining, cleansing, ventilating, lighting or improving the same, or otherwise for the safety of the public.

Closing of works.

37.—(1) Except for the purposes of—

- (a) landing or embarking persons engaged in the construction, maintenance or operation of any of the works; or

Restrictions as to landing or loading place.

PART III
—cont.

(b) landing or loading from or into vessels not arriving from or departing for foreign parts any goods, materials, vehicles, plant or machinery required for or used in such construction, maintenance or operation;

none of the works shall be used as a landing or loading place for any vessel.

1968 c. 59.

(2) In this section “vessel” includes a hovercraft within the meaning of the Hovercraft Act 1968.

No sewers,
mains or pipes
to be laid in
tunnel or
tunnel
approaches.
1950 c. 39.

38. Notwithstanding anything contained in the Public Utilities Street Works Act 1950, or in any other enactment, no person shall enter upon, break up or interfere with the tunnel or the tunnel approaches or any part thereof or the carriageways or footways thereof or any part thereof for the purpose of laying down any sewer, drain, main, pipe, wire or other apparatus or executing any work therein, thereon, thereunder or thereover except with the consent of the Council in writing and in accordance with such terms and conditions either as to the payment of rent or other valuable consideration or otherwise as the Council may determine.

Application of
Public Utilities
Street Works
Act 1950.

39. In relation to any of the works to which, apart from this section, the provisions contained in Part II of, and Schedule 4 to, the Public Utilities Street Works Act 1950 (which regulate the relations between an authority executing a road alteration and undertakers within the meaning of that Act whose apparatus is affected thereby), would not apply, the said provisions shall apply as if the works were mentioned in section 21 (1) (a) of that Act, and the undertakers' apparatus affected thereby were in a street.

Abatement of
works
abandoned or
decayed.

40.—(1) Where a tidal work is abandoned, or suffered to fall into decay, the Secretary of State may by notice in writing require the Council at their own expense either to repair and restore the work or any part thereof, or to remove the work and restore the site thereof to its former condition, to such an extent and within such limits as the Secretary of State thinks proper.

(2) Where a work authorised by this Act and consisting partly of a tidal work and partly of works on or over land above the level of mean high-water springs is abandoned or suffered to fall into decay and that part of the work on or over land above the level of mean high-water springs is in such condition as to interfere or to cause reasonable apprehension that it may interfere with the right of navigation or other public rights over the foreshore, the Secretary of State may include that part of the work, or any portion thereof, in any notice under this section.

(3) If, on the expiration of thirty days from the date when a notice under this section is served upon the Council, they have failed to comply with the requirements of the notice the Secretary of State may execute the works specified in the notice and any expenditure incurred by him in so doing shall be recoverable from the Council as a simple contract debt.

PART III
—cont.

41.—(1) In case of injury to or destruction or decay of a tidal work or any part thereof the Council shall forthwith notify Trinity House and shall lay down such buoys, exhibit such lights and take such other steps for preventing danger to navigation as Trinity House shall from time to time direct.

(2) If the Council fail to notify Trinity House as required by this section or to comply in any respect with a direction given under this section they shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

42. Any person who intentionally obstructs any person acting under the authority of the Council in setting out the lines of the works, or who without reasonable excuse interferes with, moves or removes any pole, stake, station point or bench mark established for the purpose of such setting out, shall for every such offence be liable to a fine not exceeding twenty pounds.

PART IV FINANCE

43.—(1) The Council may borrow without the consent of the Secretary of State, for any of the purposes specified in the first column of the following table, the sum specified in relation thereto in the second column of that table.

(2) Every sum borrowed under subsection (1) of this section shall be repaid within such period from the date of borrowing as the Council may determine, not exceeding the period specified in relation thereto in the third column of the following table.

(3) Subject to the provisions of this Act, section 172 of, and Schedule 13 to, the Local Government Act 1972 shall have effect as if money borrowed under this section were borrowed under that section and that schedule.

(4) It shall not be lawful to exercise the powers of borrowing conferred by this section, other than the power of borrowing to pay the costs, charges and expenses of this Act, except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

1946 c. 58.

PART IV
—cont.

(1) Purposes for which money may be borrowed	(2) Amount	(3) Maximum period for repayment of loan
(i) The purchase of lands, easements and rights for the works	£500,000	Sixty years.
(ii) The construction of the works (except machinery, plant and equip- ment)	£20,200,000	Sixty years.
(iii) Machinery, plant and equipment for the works	£1,600,000	Twenty-five years.
(iv) The payment, out of capital, of interest on moneys borrowed for purposes (i), (ii) and (iii) above during the period of suspension authorised by section 44 (Susten- sion of payments into sinking fund) of this Act	The sum required	Sixty years.
(v) For paying the costs, charges and expenses of this Act	The sum required	Five years.

Suspension of
payments into
sinking fund.

44. Notwithstanding anything contained in any Act it shall be lawful for the sums to be provided for the redemption of borrowed moneys for or in respect of purposes (i) to (iv) referred to in the table set out in subsection (1) of section 43 (Power to borrow) of this Act to be suspended until the completion of the works and in any year thereafter in which any tolls levied are insufficient to meet the requisite provision for repayment of borrowed moneys after payment of the working and establishment expenses and costs of maintenance and interest on moneys borrowed and in the event of such sums being suspended the periods mentioned in the second column of the said table shall commence from the date or dates at which the provision of such sums for such redemption is commenced:

Provided that such suspension shall not be for a longer period from the date of completion of the works than ten years or such longer period as the Secretary of State may approve.

PART V
TOLLS AND CHARGES

Power to take
tolls.

45.—(1) From and after the opening of the tunnel for public traffic the Council may demand, take and recover in respect of all or any class of traffic passing through or into the tunnel or entering any of the tunnel approaches tolls not exceeding those

specified in an order made by the Council in accordance with the provisions of this section and for any other services rendered by the Council in connection with the tunnel such reasonable charges as they may think fit:

PART V
—cont.

Provided that the Council may—

- (i) cease to demand, take and recover tolls in respect of traffic or any class of traffic passing through the tunnel; and
- (ii) resume demanding, taking and recovering such tolls; and
- (iii) allow traffic or any class of traffic to use the tunnel without paying tolls or on payment of tolls at a reduced rate during such hours or on such occasions as they may from time to time determine.

(2) In determining the level of tolls to be specified in an order made under subsection (1) of this section the Council shall have regard to—

- (a) the financial position and future prospects of the tunnel scheme;
- (b) such other matters of a transportation nature within their area as shall be deemed by the Council at that time to be relevant;
- (c) such other matters of a social nature within their area as shall be deemed by the Council at that time to be relevant.

(3) The Council may make a further order revising all or any of the tolls authorised under this section or any classification of traffic specified in any order for the time being in force under this section, and the provisions of subsection (2) of this section shall apply to the making of any such further order:

Provided that if an order (the “previous order”) for the time being in force has been made by the Secretary of State under subsection (5) of this section the Council may not make a further order revising all or any of the tolls or any classification of traffic specified in the previous order unless—

- (a) a period of not less than twelve months has elapsed since the making of the previous order; and
- (b) the Council have notified the Secretary of State of their intention to make the further order and considered any observations of the Secretary of State; and
- (c) in the opinion of the Council there has been, since the date of the making of the previous order by the Secretary of State, a material change in any of the circumstances relating to any matters referred to in subsection (2) of this section.

PART V
—cont.

(4) Before making an order under this section the Council shall give notice by advertisement in the London Gazette and in one or more local newspapers circulating in their area stating the contents of the proposed order and shall take into consideration any objections or representations in respect of the proposed order made within twenty-eight days of the first publication of the notice.

(5) If at any time after the making of an order by the Council it is represented in writing to the Secretary of State by any person or any body sufficiently representative of persons appearing to the Secretary of State to have a substantial interest in the use of the tunnel that in all the circumstances all or any of the tolls authorised in pursuance of this section or any classification of traffic specified in any order for the time being in force under this section should be revised, the Secretary of State may, if he thinks fit, make an order revising all or any of such tolls or any classification of traffic as aforesaid and may fix the date as from which such order shall take effect and thenceforth that order shall be observed until the same expires or is revoked or revised by a further order of the Secretary of State or of the Council made under this section.

(6) As soon as may be after the receipt by the Secretary of State of a representation pursuant to subsection (5) of this section from any person or any body other than the Council the Secretary of State shall send a copy of the representation to the Council.

(7) Before making an order under this section the Secretary of State may, if he thinks fit, cause a local inquiry to be held by such person as he may appoint for the purpose.

(8) In deciding whether to make an order under this section and as to the contents thereof the Secretary of State shall have regard to the matters referred to in subsection (2) of this section.

(9) If a representation is made to the Secretary of State under subsection (5) of this section the Council shall furnish the Secretary of State with such information and particulars as the Secretary of State may require and shall upon being required to do so by the Secretary of State publish in the London Gazette and in such one or more newspapers as the Secretary of State may specify a notice stating—

- (a) the general effect of the representation;
- (b) the place or places at which copies of the representation may be inspected free of charge and copies thereof purchased and the price of such copies;
- (c) the date, being 28 days after the first publication of the notice, by which objections to the representation may be made in writing to the Secretary of State.

(10) The power of the Secretary of State to make an order under subsection (5) of this section shall be exercised by statutory instrument and the Secretary of State may by an order made by him under the said subsection amend, vary or revoke any order made by the Council or the Secretary of State under this section.

(11) Section 6 of the Transport Charges, etc. (Miscellaneous Provisions) Act 1954 shall not apply in relation to the tolls and charges by this section authorised to be demanded and taken. 1954 c. 64.

(12) The Council shall—

- (a) keep an annual account of their income from, and of their expenditure in connection with, the tunnel; and
- (b) within four months of the close of the financial year, or such longer period as the Secretary of State may allow, send to the Secretary of State a copy of that account.

46. A list of the tolls by virtue of this Act authorised to be demanded and taken by the Council shall at all times be exhibited in a conspicuous position within a reasonable distance of the place where those tolls are payable. List of tolls to be exhibited.

47. The tolls and charges by virtue of this Act authorised to be demanded and taken shall be paid to such persons and at such places and in such manner and in compliance with such regulations as the Council may from time to time appoint or make, and the Council may recover such tolls and charges by action in any court of competent jurisdiction, and, when such tolls or charges are not paid at the time at which the tunnel is used or the services provided, the Council may recover such additional sum as the Council think reasonable to cover administrative expenses in addition to the tolls or charges payable. Regulations as to payment of tolls and charges.

48.—(1) The Council may, on receiving payment of any toll, supply a ticket to any person intending to pass through or into the tunnel or to enter any of the tunnel approaches, and any person to whom a ticket is so supplied may be required on demand to show or deliver up that ticket to the toll collector or other person appointed by or on behalf of the Council to inspect or collect the same at such place or places as the Council may from time to time determine. Tickets.

(2) The Council may, either when they enter into a composition agreement in accordance with the provisions of section 50 (Power to compound for the payment of tolls) of this Act, or otherwise, issue prepaid tickets and any person to whom such a ticket is issued may be required on demand to show that ticket to the toll collector or other person appointed by or on behalf of the Council to inspect the same at such place or places as the Council may

PART V
—cont.

from time to time determine, and shall deliver it up to such toll collector or other person appointed by or on behalf of the Council to receive the same at the expiration of the period for which it is issued.

Power to stop persons refusing to pay tolls.

49. If any person liable to pay any toll authorised to be demanded and taken from him by virtue of this Act refuses or neglects to pay the toll, an officer duly authorised by or on behalf of the Council may refuse to permit the person so in default to pass through or by any toll-gate or other place at which the toll is payable, and may by himself, or with such assistance as he shall think necessary, stop and prevent the person so in default from passing through or by the toll-gate or other place as aforesaid and, if any such person has entered any of the tunnel approaches, may require him to return along the approach by which he came, and, if necessary, to repass through the tunnel.

Power to compound for the payment of tolls.

50. The Council may compound and agree with any person using the tunnel or the tunnel approaches for his passage or for the passage of any other person or of any traffic through the tunnel or along the tunnel approaches on such terms and for such period as may be agreed.

Penalties for evasion of tolls.

51. If any person who without reasonable excuse refuses or neglects to pay any toll when the same shall be demanded from him by virtue of this Act, he shall, without prejudice to any remedy of the Council for the recovery of the toll, be guilty of an offence and liable on summary conviction to a fine not exceeding twenty pounds.

Power to provide toll-houses, etc.

52. The Council may from time to time construct, maintain and operate upon and remove from any land for the time being belonging to the Council (including any part of the tunnel or tunnel approaches) such toll-houses, toll-gates, offices and other conveniences in connection with the works as may be necessary or convenient.

Exemption from tolls.

53.—(1) Nothing in this Act shall extend to authorise any tolls to be demanded in respect of—

(a) a vehicle identifiable by its appearance or by writing or markings thereon as being the property of—

(i) a police authority; or

(ii) a fire authority as defined in the Fire Services Act 1947; or

(iii) one of the civil defence forces or the civil defence services as respectively defined in the Civil Defence Act 1948;

(b) an ambulance or other vehicle if it is being used by a health authority in the discharge of their functions under section 2 (2) (c) of the National Health Service

1947 c. 41.

1948 c. 5
(12, 13 & 14
Geo. 6.)

Reorganisation Act 1973, or by a voluntary organisation or other person under an arrangement made under that section, or any other ambulance if it is being used for the purpose of or in connection with the transport of sick or injured persons or for the carriage in an emergency of medical apparatus or supplies.

PART V
—cont.

1973 c. 32.

(2) If any person with intent to defraud claims or takes the benefit of any such exemption as is allowed by subsection (1) of this section without being entitled thereto he shall be guilty of an offence and liable on summary conviction to a fine not exceeding fifty pounds.

PART VI

MISCELLANEOUS AND GENERAL

54. The provisions of Schedule 2 (Protective provisions) to this Protective Act shall have effect for protecting the interests of the persons therein specified.

55.—(1) The Council may provide, maintain and operate vehicles for the purpose of providing services for carrying bicycles and persons riding thereon or carried thereby into, along and through the tunnel and on the tunnel approaches, and may do all such things and make all such arrangements as may be requisite for or incidental to the provision and maintenance of such vehicles and the operation thereof for the purpose aforesaid.

Provision and
operation of
services for
transporting
cyclists
through tunnel.

(2) Nothing in this section shall derogate from Part III of the Road Traffic Act 1960.

1960 c. 16.

(3) The operation of vehicles in pursuance of subsection (1) of this section shall not, for the purposes of section 101 (1) of the Road Traffic Act 1930, be regarded as the operation of a tramway, light railway, trolley vehicle or omnibus undertaking.

1930 c. 43.

56.—(1) Subject to the provisions of this Act, for the purpose of preventing damage to the tunnel or the protective blanket—

Action by port
authority to
protect tunnel.

(a) (i) the port authority shall give not less than two months' notice to the Council (except in a case of emergency) of any proposal by them to carry out operations for the improvement or maintenance of the river within 250 metres or, in the case of any blasting operations, 500 metres upstream or downstream of the centre line of the tunnel; and

(ii) the Council may at any time within 28 days of the receipt of such notice request the port authority to modify such proposals; and

PART VI
—cont.

- (iii) in default of the port authority modifying the proposals to the satisfaction of the Council within 28 days of receiving such request the Council may refer the proposals to the Secretary of State who may require the port authority not to implement the proposals or may approve the proposals with or without modifications, terms or conditions:

Provided that the foregoing provisions of this paragraph shall not apply to the carrying out by the port authority of any operations for the improvement or maintenance of the river (other than blasting operations within 500 metres as aforesaid) to a depth in any part of the bed, banks and foreshore of the river of not less than 7·6 metres below the level of low water of ordinary spring tides within the width of a zone extending 76 metres from either side of the centre line of the river;

- (b) the port authority shall take such measures as they think fit to prevent—
- (i) any vessel from dropping anchor within 150 metres upstream or downstream of the centre line of the tunnel;
 - (ii) any dredging operations to a depth which is within 0·3 metres of the uppermost level of the protective blanket;

(2) In this section “protective blanket” means the layer of rocks laid over and near the tunnel and comprised in Work No. 1.

Byelaws.
1967 c. 76.

57.—(1) Without prejudice to the powers conferred on the Council under the Road Traffic Regulation Act 1967, the Council may in pursuance of this Act and any other Act enabling them in that behalf make and enforce byelaws for—

- (a) the regulation, control and protection of the tunnel and the tunnel approaches or of any part of the tunnel or the tunnel approaches and of persons resorting to or using the same;
- (b) the management, regulation, direction and control of traffic of every description using the tunnel or the tunnel approaches or any part of the tunnel or the tunnel approaches;
- (c) securing the safe custody, redelivery or disposal of any property accidentally left or abandoned in the tunnel or on the tunnel approaches or in any premises used for the purposes of or in connection with the tunnel or the tunnel approaches or in any vehicle (not being a public service vehicle as defined in section 117 of the Road

Traffic Act 1960) of, or operated by, the Council and for fixing the charges to be made by the Council in respect thereof:

PART VI
—cont.
1960 c. 16.

Provided that no such byelaw, unless made for the protection of the tunnel, shall extend to impose any prohibition on the operation through the tunnel of any public service vehicle or to regulate any public service vehicle in such a manner as to prevent compliance with the terms of a road service licence authorising a service through the tunnel.

(2) Without prejudice to the generality of the provisions of subsection (1) of this section, byelaws made by the Council in pursuance of this section may contain provisions—

- (a) fixing maximum and minimum speed limits or either of such speed limits to be observed by motor vehicles whilst passing through the tunnel or along the tunnel approaches or through or along part of the tunnel or the tunnel approaches;
- (b) prohibiting the passage of particular traffic through the tunnel or along the tunnel approaches or through or along any part of the tunnel or the tunnel approaches either generally or during particular hours.

(3) (a) All byelaws from time to time made in pursuance of this section shall be made under and according to the provisions of section 236 of the Local Government Act 1972 and the provisions of section 238 of the said Act shall apply to such byelaws. 1972 c. 70.

(b) The byelaws which may from time to time be made by the Council in pursuance of this section may provide for the imposition of a fine not exceeding twenty pounds for a breach or non-observance of any of the byelaws and, in the case of a continuing offence, a further fine not exceeding two pounds for each day during which the offence continues after conviction therefor.

(c) The said section 236, in its application to byelaws made under this section, shall have effect as if in subsection (7) of that section, after the word “confirm”, where it firstly occurs, there were inserted the words “with or without modification”:

Provided that where the Secretary of State proposes to make a modification which appears to him to be substantial, he shall inform the Council and require them to take any steps he thinks necessary for informing persons likely to be concerned with that modification and shall not confirm the byelaws until there has elapsed such period as he thinks reasonable for consideration of, and comment upon, the proposed modification by the Council and by other persons who have been informed of it.

PART VI
—cont.

(4) The Secretary of State shall, before confirming any byelaws made in pursuance of this section for—(a) the management, regulation, direction or control of traffic, take into consideration any objections to those byelaws submitted to him by any representative body of traders or of owners or users of vehicles or any person who in the opinion of the Secretary of State is a proper person for the purpose; and (b) the protection of the tunnel, take into consideration any objections to those byelaws submitted to him by the port authority.

(5) A copy of all byelaws made in pursuance of this section shall at all times be exhibited in conspicuous positions within a reasonable distance of each entrance to the tunnel and to the tunnel approaches.

1889 c. 63.

(6) Without prejudice to the operation of section 33 of the Interpretation Act 1889, nothing in any byelaw made by the Council in pursuance of subsection (1) (a) of this section shall preclude the bringing of proceedings against and conviction of any person with respect to an offence under Part I of the Road Traffic Act 1972 of driving a motor vehicle at a speed exceeding a statutory speed limit.

1972 c. 20.

Documents.
1972 c. 70.

58.—(1) The provisions of the Local Government Act 1972 specified in subsection (2) of this section shall apply in relation to notices, orders and other documents arising by virtue of this Act as they apply to notices, orders or documents mentioned in those provisions.

(2) The provisions of the said Act of 1972 referred to in subsection (1) of this section are—

Section 232 (Public notices);

Section 233 (Service of notices by local authorities); and

Section 234 (Authentication of documents).

Local
inquiries.

59.—(1) The Secretary of State may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act.

(2) Subsections (2) to (5) of section 250 of the Local Government Act 1972 shall apply in relation to any such inquiry.

Defence
available to
persons
charged with
certain
offences.

60.—(1) In any proceedings for an offence under section 31 (Lights on tidal works during construction) or section 41 (Provision against danger to navigation) of this Act, it shall be a defence for the person charged to prove that he took all reasonable precautions and exercised all due diligence to avoid the commission of such an offence.

(2) If in any case the defence provided by subsection (1) of this section involves the allegation that the commission of the offence was due to the act or default of another person the person charged shall not, without leave of the court, be entitled to rely on that defence unless, within a period ending seven clear days before the hearing, he has served on the prosecutor a notice in writing giving such information identifying or assisting in the identification of that other person as was then in his possession.

PART VI
—cont.

61. All offences against this Act and all fines, forfeitures, costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted or recovered (as the case may be) in a summary manner. Recovery of penalties, etc.

62. A judge of any court or a justice of the peace shall not be disqualified from acting in cases arising under or in relation to this Act, or any byelaw made thereunder, by reason only of his being, as one of several ratepayers or payers of tolls chargeable under the provisions of this Act, or as one of any other class of persons, liable in common with the others to contribute to or be benefited by any rate or fund out of which any expenses of the Council are to be defrayed. Judges and justices not to be disqualified.

63. A person who intentionally obstructs any person acting in the execution of this Act or any byelaw made under this Act or of any order, regulation, prescription, notice or warrant made or issued under this Act shall in any case in which no other provision is made by this Act be guilty of an offence and liable on summary conviction to a fine not exceeding twenty pounds and to a further fine not exceeding two pounds for each day on which the offence continues after conviction therefor. Penalty for obstructing execution of Act.

64. Where under this Act any difference (other than a difference to which the provisions of Part I of the Compulsory Purchase Act 1965 apply) is to be referred to, or settled by, arbitration, then, unless otherwise provided, such difference shall be referred to and settled by a single arbitrator to be agreed between the parties or, failing agreement, to be appointed, on the application of either party (after notice in writing to the other), by the President of the Institution of Civil Engineers. Arbitration. 1965 c. 56.

65. Notwithstanding anything contained in any enactment, no part of the tunnel undertaking (other than a dwelling-house, office and land and buildings used for maintenance work) shall be assessed to any rate within the meaning of the Local Loans Act 1875. Undertaking to be exempt from rates. 1875 c. 83.

66. Nothing in this Act shall affect the operation of Part I of the Coast Protection Act 1949. Saving for Coast Protection Act 1949. 1949 c. 74.

PART VI
—cont.

Saving for
port
authority.

67.—(1) Subject to the provisions of this section and to the provisions of section 56 (Action by port authority to protect tunnel) of this Act, nothing in this Act shall prejudice, take away, or diminish any statutory or other right, power, privilege, jurisdiction or authority acquired by, vested in or enjoyed by the port authority which shall continue to be held, exercised and enjoyed by them as if this Act had not been passed.

1966 c. xxv.

(2) In relation to the works and any dredging authorised by section 29 (Dredging) of this Act, subsection (1) of section 25 of the Tees and Hartlepoons Port Authority Act 1966 shall have effect as if the proviso to the said subsection were omitted.

(3) Where in relation to or in consequence of the implementation of the provisions of this Act the port authority exercise any of their powers under the Tees and Hartlepool Port Authority Acts and Orders 1966 to 1974, the expression “vessel” in subsection (2) of section 3 of the Tees and Hartlepoons Port Authority Act 1966 shall be deemed to include any floating manufactured article.

Saving for
Trinity House.

68. Subject to the provisions of Schedule 2 (Protective provisions) to this Act, nothing contained in this Act shall prejudice or affect the powers, rights and privileges of the Corporation of Trinity House of Deptford Strond.

Crown rights.

69. Nothing in this Act shall affect prejudicially any estate, right, power, privilege or exemption of the Crown and, in particular, nothing herein contained shall authorise the Council to take, use or in any manner interfere with any portion of the shore or bed of the sea or of the haven or any land, hereditaments, subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners or belonging to a government department or held in trust for Her Majesty for the purpose of a government department without the consent in writing of such commissioners on behalf of Her Majesty or, as the case may be, the consent in writing of that government department first had and obtained for that purpose.

SCHEDULES

SCHEDULE 1

Section 22.

STREETS WHICH MAY BE STOPPED UP

In the borough of Langbaurch—

Coral Street.
Lime Street.
Middlesbrough Road (A.175).
Nelson Street.
Norman Terrace.
North Street.
Old Middlesbrough Road.
Pearl Street.
Severs Street.
Station Road.

In the borough of Stockton-on-Tees—

Seaton Carew Road (A.178).

SCHEDULE 2

Section 54.

PROTECTIVE PROVISIONS

PART 1

FOR PROTECTION OF BRITISH GAS CORPORATION

For the protection of the undertakers the provisions of this Part of this Schedule shall, unless otherwise agreed in writing between the Council and the undertakers, apply and have effect:—

- (1) In this Part of this Schedule, unless the subject or context otherwise requires—

“the Act of 1950” means the Public Utilities Street Works Act 1950; 1950 c. 39.

“adequate alternative apparatus” means alternative apparatus adequate to enable the undertakers to fulfil their statutory functions in a manner not less efficient than previously;

“apparatus” means mains, pipes and apparatus belonging to, or maintained by, the undertakers and includes any works constructed for the lodging therein of apparatus;

“in” in a context referring to apparatus includes under, over, across, along or upon;

“position” includes depth or level;

“the undertakers” means the British Gas Corporation:

- (2) Notwithstanding anything in this Act or shown on the deposited plan the Council shall not acquire any apparatus under the powers of this Act otherwise than by agreement:
- (3) The provisions of the Act of 1950 as extended by section 39 (Application of Public Utilities Street Works Act 1950) of this Act shall not regulate the relations between the Council

SCH. 2
—cont.

and the undertakers in respect of any matter or thing concerning which those relations are regulated in any respect by the following provisions of this Part of this Schedule:

- (4) Nothing in the following sections of this Act shall relieve the Council from liability for damage caused by them to any apparatus in the exercise of the powers of the said sections and the Council shall so exercise those powers as not to obstruct or render less convenient (so far as is reasonably practicable) the access to any apparatus:—
- Section 13 (Power to construct works);
 - Section 15 (Subsidiary works);
 - Section 16 (Subsidiary works affecting river);
 - Section 24 (Underpinning of houses and buildings near works);
 - Section 52 (Power to provide toll-houses, etc.):
- (5) If the Council in the exercise of any of the powers of this Act take possession temporarily of or acquire any interest in any land in which any apparatus is placed, that apparatus shall not be removed nor shall any rights of the undertakers to use, maintain, repair, renew or inspect any apparatus in that land be extinguished until adequate alternative apparatus has been provided and is in operation to the reasonable satisfaction of the undertakers:
- (6) If the Council for the purposes of or in connection with the construction of any of the works in, on or under any land acquired, held, appropriated or used under this Act, require the permanent removal of any apparatus from that land, they shall give to the undertakers written notice of such requirement with a plan and description and, where applicable, a section of the work proposed and of the proposed position of the alternative apparatus (if any) to be provided so as to provide adequate alternative apparatus in place of the apparatus to be removed:
- (7) If the Council require the undertakers to remove any apparatus permanently from any land under paragraph (6) above, or if in consequence of the exercise of any of the powers of this Act the undertakers reasonably require to remove any apparatus, the Council shall afford to the undertakers the necessary facilities and rights for the provision in other land of the Council of adequate alternative apparatus and thereafter for the maintenance, repair, renewal and inspection of such apparatus:
- Provided that if the alternative apparatus, or any part thereof, is to be provided elsewhere than in other land of the Council and the Council are unable to afford such facilities and rights as aforesaid in the land in which the alternative apparatus or such part thereof is to be provided, the undertakers shall, on receipt of a written notice to that effect from the Council, forthwith use their best endeavours to obtain the necessary facilities and rights:

- (8) Any alternative apparatus to be provided in land of the Council in pursuance of paragraph (7) above shall be laid or constructed in such manner and in such line or position as may be agreed between the undertakers and the Council or, in default of agreement, settled by arbitration:
- (9) The undertakers shall, after the manner of laying or construction and the line and position of any alternative apparatus have been agreed or settled by arbitration as aforesaid, and after the grant to the undertakers of any such facilities and rights as are referred to in paragraph (7) above proceed with all reasonable dispatch to lay or construct and bring into operation the alternative apparatus and thereafter to remove any apparatus required by the Council to be removed under the provisions of this Part of this Schedule:
- (10) Notwithstanding anything in paragraph (9) above if the Council give notice in writing to the undertakers that they desire themselves to execute any part of so much of the work necessary in connection with the provision of the alternative apparatus, or the removal of the apparatus required to be removed, as will be situate in any land of the Council, such work, instead of being executed by the undertakers shall be executed by the Council with all reasonable dispatch under the superintendence (if given) and to the reasonable satisfaction of the undertakers:

SCH. 2
—cont.

Provided that nothing in this paragraph shall authorise the Council to carry out the placing, erection, construction, installation, bedding, packing, removal, connection or disconnection of any apparatus or any filling around such apparatus (where the apparatus is laid in a trench) within 30 centimetres above the apparatus:

- (11) Where in accordance with the provisions of this Part of this Schedule the Council afford to the undertakers facilities and rights in land of the Council for the laying or construction, maintenance, repair, renewal and inspection of alternative apparatus in substitution for apparatus to be removed as aforesaid, those facilities and rights shall be granted upon such terms and conditions as may be agreed between the Council and the undertakers or in default of agreement, determined by arbitration:

Provided that—

(a) in determining such terms and conditions as aforesaid in respect of alternative apparatus (if any) to be laid or constructed in or through any of the works the arbitrator shall—

(i) give effect to all reasonable requirements of the Council for ensuring the safe and efficient use of the works and for securing any subsequent alterations or adaptations of the alternative apparatus which may be required to prevent interference with the works; and

SCH. 2
—cont.

(ii) so far as it may be reasonable and practicable to do so in the circumstances of the particular case, give effect to any terms and conditions applicable to the apparatus constructed through the land of the Council for which the alternative apparatus is to be substituted;

(b) if the facilities and rights to be afforded by the Council in respect of any alternative apparatus, and the terms and conditions subject to which the same are to be granted, are, in the opinion of the arbitrator, more or less favourable on the whole to the undertakers than the facilities, rights, terms and conditions applying to the apparatus to be removed, the arbitrator shall make such provision for the payment of compensation to or by the Council by or to the undertakers in respect thereof as shall appear to him to be reasonable having regard to all the circumstances of the particular case:

- (12) (a) Not less than twenty-eight days or such other period as may be agreed between the Council and the undertakers, before commencing to carry out any works which are near to or are likely to affect any apparatus the removal of which has not been required by the Council under paragraph (6) above, the Council shall submit to the undertakers a plan, section and description of the works to be carried out;
- (b) Such works shall be carried out only in accordance with the plan, section and description submitted as aforesaid and in accordance with such reasonable requirements as may be made by the undertakers for the alteration or otherwise for the protection of the apparatus, or for securing access thereto, and the undertakers shall be entitled by their officers to watch and inspect the carrying out of such works:

Provided that—

(i) if the undertakers, within fourteen days, or such other period as may be agreed between the Council and the undertakers, after the submission to them of any such plan, section and description, shall, in consequence of the works proposed by the Council, reasonably require the renewal of any apparatus and give written notice to the Council of such requirement, the foregoing provisions of this Part of this Schedule shall apply and have effect as if the removal of such apparatus had been required by the Council under paragraph (6) above; and

(ii) nothing in this paragraph shall preclude the Council from submitting at any time, or from time to time, but in no case less than twenty-eight days, or such other period as may be agreed between the Council and the undertakers, before commencing the carrying out of the works, a new plan, section and description thereof instead of the plan, section and description previously submitted, and thereupon the provisions of this paragraph shall apply to, and in respect of, such new plan, section and description:

SCH. 2
—cont.

(c) The Council shall not be required to comply with sub-paragraph (a) of this paragraph in a case of emergency but, in such a case, they shall give notice to the undertakers as soon as reasonably practicable and a plan, section and description of the works as soon as reasonably practicable thereafter, and shall comply with sub-paragraph (b) of this paragraph so far as reasonably practicable in the circumstances:

(13) If in consequence of the exercise of the powers of this Act the access to any apparatus the removal of which is not required under this Part of this Schedule is materially impeded the Council shall provide alternative means of access to such apparatus:

(14) The Council shall repay to the undertakers the reasonable expenses incurred by the undertakers, in, or in connection with—

(a) the removal and relaying or replacing, alteration or protection of any apparatus and the provision, laying, construction or placing of any new apparatus under any of the provisions of this Part of this Schedule;

(b) the cutting off of any apparatus from any other apparatus; and

(c) any other work or thing rendered reasonably necessary in consequence of the exercise by the Council of any of the powers of this Act:

Provided that subsections (3) and (4) of section 23 of the Act of 1950 (which imposes limitations on undertakers' rights to payment) shall, so far as applicable, extend and apply to any payment to be made under this paragraph as if the works in respect of which the payment is to be made were such undertakers' works as are referred to in the said subsection (3) and as if in that subsection for the words "specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act" there were substituted the words "agreed or settled by arbitration under Part 1 (For protection of British Gas Corporation) of Schedule 2 to the Tees Tunnel Act 1976":

(15) Notwithstanding the stopping up temporarily or permanently of any street, or part of a street, under the powers of section 22 (Permanent stopping up of streets without providing substitutes) or section 23 (Temporary stoppage of streets, streams and watercourses) of this Act, the closing of the tunnel approaches or any part thereof under the powers of section 35 (Power to prevent access to or egress from tunnel approaches) or section 36 (Closing of works) of this Act, or any byelaw made under section 57 (Byelaws) of this Act, the undertakers, their engineers or workmen and others in their employ shall at all reasonable times have such right of access with any necessary vehicles to all or any apparatus in any such street or the tunnel approaches or part thereof as they had immediately before such stopping up or closing or the making of such

SCH. 2
—cont.

byelaw and shall be at liberty at all times to execute and do all such works and things in, upon or under such street or the tunnel approaches or part thereof as may be reasonably necessary for inspecting, repairing, maintaining, renewing, replacing or removing such apparatus:

(16) Notwithstanding anything in section 28 (Power to pump water and use sewers for removing water) of this Act, no use shall be made by the Council in the construction of the works of pumping or other like modes of removing water found by them except where reasonably necessary or in the case of an emergency or unforeseen accident or for the purpose of removing rainwater or other small amounts of water, and the provisions of section 26 of the Act of 1950 shall apply to, and in relation to, the laying down, taking up or altering of conduits, pipes or other works and conveniences for the purpose of pumping water found by the Council under the said section 28 as if executed by the Council as operating undertakers within the meaning of section 26 of the Act of 1950:

(17) Where any apparatus in respect of which the consent of the Council is required under section 38 (No sewers, mains or pipes to be laid in tunnel or tunnel approaches) of this Act is to be laid down along a line crossing the route of any part of the tunnel approaches but not running along that route the Council—

(i) shall not withhold their consent under that section unless there are special reasons for doing so; and

(ii) shall if they give their consent subject to conditions repay to the undertakers any additional expenses reasonably incurred by them in complying therewith:

(18) If by reason or in consequence of the construction, user or failure of any of the works, or any subsidence resulting therefrom, any damage to any apparatus (other than apparatus the repair of which is not reasonably necessary in view of its intended removal or abandonment) or property of the undertakers or any interruption in the supply of gas shall be caused, the Council shall bear and pay the cost reasonably incurred by the undertakers in making good such damage or restoring the supply and shall—

(a) make reasonable compensation to the undertakers for any loss sustained by them; and

(b) indemnify the undertakers against all claims, demands, proceedings, costs, damages and expenses which may be made or taken against or recovered from or incurred by the undertakers;

by reason or in consequence of any such damage or interruption:

Provided that—

(i) nothing in this paragraph shall impose any liability on the Council with respect to any damage or interruption

to the extent that such damage or interruption is attributable to the act, neglect or default of the undertakers or their contractors or workmen;

SCH. 2
—cont.

(ii) the undertakers shall give to the Council reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent in writing of the Council:

- (19) The expenses of all repairs or renewals of any apparatus which may be rendered necessary by reason or in consequence of the construction or failure of the works or any subsidence resulting from the works shall be borne by the Council and paid by them to the undertakers:
- (20) The Council shall bear and pay any cost reasonably incurred by the undertakers in the reasonable employment of watchmen and inspectors during the execution of any works which will or may interfere with or affect any apparatus:
- (21) (a) Any difference arising between the Council and the undertakers under this Part of this Schedule shall be settled by arbitration;
- (b) In determining any difference under this Part of this Schedule the arbitrator shall have regard to any duty or obligation the undertakers may be under in respect of any apparatus and may if he thinks fit require the Council to carry out any temporary or other works so as to avoid, as far as may be reasonably possible, interference with the use of any apparatus.

PART 2

FOR PROTECTION OF BOC LIMITED

For the protection of BOC Limited (in this Part of this Schedule referred to as "BOC") the following provisions shall, unless otherwise agreed in writing between the Council and BOC, apply and have effect:—

- (1) In this Part of this Schedule, unless the subject or context otherwise requires—

"apparatus of BOC" means any pipelines or other apparatus belonging to BOC situated in the relevant lands;

"construct" includes enlarge, replace, renew and alter and "construction" shall be construed accordingly;

"plans" includes sections, specifications and particulars;

"position" includes depth;

"relevant lands" means the lands numbered on the deposited plan 20 to 24 in the borough of Langbaugh in the county of Cleveland:

SCH. 2
—cont.

(2) Notwithstanding anything in any other provision of this Act—

(a) the acquisition by the Council under the powers of this Act of any interest or right in the relevant lands shall not extinguish any existing easements or rights of BOC for the maintenance, repair, renewal and inspection of the apparatus of BOC in those lands; and

(b) that apparatus shall not be removed, nor the existing rights of BOC for access to that apparatus prevented or impeded, until alternative apparatus adequate to enable BOC to provide the supplies of gas now supplied by means of that first-mentioned apparatus has been provided and is in operation to the reasonable satisfaction of BOC and BOC are assured of all such facilities as they may reasonably require for the construction, maintenance, repair, renewal and inspection of that alternative apparatus in accordance with the provisions of this Part of this Schedule and have been granted an easement and rights for the maintenance, repair, renewal and inspection of that alternative apparatus not less favourable than those now held by BOC in respect of such first-mentioned apparatus:

(3) (a) If the Council, for the purpose of carrying out any works in or under the relevant lands under this Act, require the alteration of, or the alteration of the position of, the apparatus of BOC in those lands, they shall give to BOC not less than nine months' notice of their requirement accompanied by plans of their proposed works and of their proposals of alteration of the apparatus of BOC, or the provision for alternative apparatus as aforesaid, as the case may be, including in such last-mentioned case their proposals as to the facilities, easement and rights to be afforded to BOC for the construction, and thereafter for the maintenance, repair, renewal and inspection of the alternative apparatus;

(b) When the proposals so made by the Council have been agreed between BOC and the Council, or in default of agreement determined by arbitration under this Part of this Schedule, and such facilities, easement and rights as BOC may reasonably require in respect of alternative apparatus as aforesaid have been assured or granted to them, BOC shall with all reasonable dispatch carry out the alteration of their apparatus or construct and bring into operation the alternative apparatus, as the case may be, in accordance with the proposals so agreed or determined and shall thereafter, unless they shall have notified the Council of their intention to abandon it, remove any apparatus required by the Council to be removed under the provisions of this Part of this Schedule and, in default, the Council may remove the apparatus:

(4) (a) Not less than twenty-eight days before commencing the construction of any works in or under any land within 15 metres of, or which may otherwise affect, any apparatus

of BOC the alteration of which has not been required by the Council under paragraph (3) above, the Council shall submit to BOC a plan of those works;

SCH. 2
—cont.

- (b) Any such works shall be constructed by the Council only in accordance with the plan so submitted and in accordance with such reasonable requirements as may be made by BOC, within fourteen days from the submission to them of the plan, for the protection of the apparatus of BOC or for securing access thereto and, if BOC reasonably require any alteration of the position of their apparatus in consequence of the works proposed by the Council and give notice to the Council to that effect within the said period of fourteen days, the provisions of paragraph (3) above shall have effect as if the alteration of the position of the apparatus were required by the Council:

Provided that nothing in this paragraph shall preclude the Council from submitting at any time, or from time to time (but in no case less than twenty-eight days before commencing the execution of those works), a new plan instead of the plan previously submitted, and thereupon the provisions of this paragraph shall apply to, and in respect of, the new plan:

- (5) The Council shall not be required to comply with paragraph (4) of this Part of this Schedule in case of emergency but, in such a case, they shall give notice to BOC as soon as is reasonably practicable and a plan of the works so soon as reasonably practicable thereafter, and shall otherwise comply with that paragraph so far as reasonably practicable in the circumstances:
- (6) The Council shall pay to BOC all costs and expenses reasonably incurred by BOC in, or in connection with, the inspection, alteration or protection of the apparatus of BOC or the renewal of such apparatus, and the provision of alternative apparatus which may be required in consequence of any works of the Council less the value of any apparatus removed in pursuance of the provisions of this Part of this Schedule (such value being calculated after removal), and shall also make compensation to BOC—

(a) for any damage caused to any apparatus of BOC (other than apparatus the repair of which is not reasonably necessary in view of its intended removal in accordance with the provisions of this Part of this Schedule); and

(b) for any other expenses, loss, damage or costs incurred by BOC (including any increase in the cost to BOC of insurance in respect of their obligations to supply gas);

by reason or in consequence of the execution, maintenance, use or failure of any such works:

- (7) Section 23 (3) and (4) of the Public Utilities Street Works Act 1950 (Limitations on undertakers' right to payments) 1950 c. 39.

SCH. 2
—cont.

shall, so far as applicable, apply to any payment to be made by the Council under paragraph (6) of this Part of this Schedule as if the works or operations mentioned in that paragraph were such undertakers' works as are referred to in the said section 23 (3) and as if in that provision for the words "specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act or agreed so to be by the promoting authority" there were substituted the words "agreed or determined by arbitration under Part 2 (For protection of BOC Limited) of Schedule 2 (Protective provisions) of the Tees Tunnel Act 1976":

- (8) The Council shall indemnify BOC against all claims, demands proceedings, costs, damages and penalties which may be made or taken against, or recovered from, BOC by reason or in consequence of any damage to the apparatus of BOC, or any interruption in the supply of gas by means of that apparatus, caused by reason or in consequence of the execution, maintenance, use or failure of the works of the Council:

Provided that—

(i) nothing in this paragraph shall impose any liability on the Council with respect to any claim, demand, proceedings, costs, damages or penalties to the extent to which the liability of BOC in respect of the same is covered under any policy of insurance referred to in paragraph (6) (b) above;

(ii) nothing in this paragraph shall impose any liability on the Council with respect to any damage or interruption to the extent that such damage or interruption is attributable to the act, neglect or default of BOC; and

(iii) BOC shall give to the Council reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Council:

- (9) Any difference arising between the Council and BOC under this Part of this Schedule shall be determined by arbitration.

PART 3

FOR PROTECTION OF THE BRITISH RAILWAYS BOARD

For the protection of the railways board the following provisions shall, unless otherwise agreed in writing between the Council and the railways board, apply and have effect:—

- (1) In this Part of this Schedule—

"construction" includes execution, placing and altering and "construct" and "constructed" have corresponding meanings;

"plans" include sections, drawings, specifications, soil reports, surveys, calculations and details of methods of construction;

“ railway property ” means any railway of the railways board and any works connected therewith for the maintenance or operation of which the railways board are responsible and includes any lands held or used by the railways board for the purposes of such railway or works;

“ the railways engineer ” means an engineer to be appointed by the railways board;

“ the specified works ” means so much of the works (whether temporary or permanent) authorised by this Act as may be situated upon, across, under or over or may in any way affect railway property and includes the maintenance and renewal of such works:

(2) In the exercise of the powers of—

(a) the Railways Clauses Consolidation Act 1845 with 1845 c. 20. respect to the temporary occupation of lands near the railway during the construction thereof as applied by section 3 (Incorporation of Railways Clauses Consolidation Act 1845) of, and incorporated with, this Act; and

(b) section 7 (Temporary possession of land for works), section 22 (Permanent stopping up of streets without providing substitutes) and section 23 (Temporary stoppage of streets, streams and watercourses) of this Act;

the Council shall at all times ensure access to, and egress from—

(i) any station, depot or other premises of the railways board for vehicles and pedestrians;

(ii) any railway property for the railways board and their agents, contractors and employees (with or without vehicles, plant, machinery and materials):

(3) The Council shall not under the powers of this Act acquire compulsorily any railway property but they may in accordance with the provisions of section 8 (Compulsory acquisition of easements or rights in or over land) of this Act acquire such easements and rights in any railway property delineated on the deposited plan as they may reasonably require for the purposes of the specified works:

(4) Notwithstanding anything shown on the deposited plan and sections and the provisions of section 14 (Power to deviate) of this Act the Council shall—

(a) so construct the tunnel as to provide a depth of not less than two metres between the rail level of the railway of the railways board (Darlington-Saltburn line) and the nearest part of the tunnel structure where the tunnel is to be constructed under such railway; and

(b) so construct the bridge carrying the northernmost of the tunnel approach roads over the railway of the railways board (Greatham Creek branch) as to provide a headway of not less than 4.725 metres above the rail level of the said railway where the said bridge is to be constructed over such railway:

SCH. 2
—cont.

- (5) The Council shall before commencing the specified works (other than works of maintenance or repair) furnish to the railways board proper and sufficient plans thereof for the reasonable approval of the railways engineer and shall not commence the specified works until plans thereof have been approved in writing by the railways engineer or settled by arbitration:

Provided that if within two months after such plans have been furnished to the railways board the railways engineer shall not have intimated his disapproval thereof and the grounds of his disapproval he shall be deemed to have approved the same:

- (6) If within two months after such plans have been furnished to the railways board the railways board shall give notice to the Council that the railways board desire themselves to construct any part of the specified works (other than the tunnel under the river) which in the opinion of the railways engineer will or may affect the operation of any railway or the stability of railway property, then if the Council desire such part of the specified works to be constructed the railways board shall construct the same with all reasonable dispatch on behalf of and to the reasonable satisfaction of the Council in accordance with the plans approved or deemed to be approved or settled as aforesaid:
- (7) Upon signifying his approval or disapproval of the plans the railways engineer may specify any protective works whether temporary or permanent which in his opinion should be carried out before the commencement of the specified works to ensure the safety or stability of railway property and such protective works as may be reasonably necessary for those purposes shall be constructed by the railways board with all reasonable dispatch and the Council shall not commence the construction of the specified works until the railways engineer shall have notified the Council that the protective works have been completed:
- (8) The Council shall give to the railways engineer previous notice in writing for the periods and purposes specified below, that is to say—
- (a) six months, where they intend—
 - (i) to commence the construction of any of the specified works; or
 - (ii) to carry out any works for the repair or maintenance of the specified works, being works of repair or maintenance which require the Council to have temporary occupation of any railway of the railways board;
 - (b) two months, for any other purposes not requiring the Council to have temporary occupation as aforesaid:

Provided that the railways board shall only be required to give temporary occupation of any part of their railway (Darlington-Saltburn line) to the Council for the purposes of this paragraph to the extent specified below, that is to say—

SCH. 2
—cont.

(i) total occupation shall only be given between 00.01 hours to 06.00 hours on Sundays and Bank Holidays; and

(ii) partial occupation shall be given at other times but only to such an extent that there always remain in operation two running tracks for the use of the railways board:

- (9) The specified works shall when commenced be carried out with all reasonable dispatch in accordance with the plans approved or deemed to have been approved or settled as aforesaid and under the supervision (if given) and to the reasonable satisfaction of the railways engineer and in such manner as to cause as little damage to railway property as may be and so far as is reasonably practicable so as not to interfere with or obstruct the free uninterrupted and safe user of the railway or the traffic thereon and the use by passengers of railway property and if any damage to railway property or any such interference or obstruction shall be caused or take place the Council shall notwithstanding any such approval as aforesaid make good such damage and shall on demand pay to the railways board all expenses to which they may be put and compensation for any loss which they may sustain by reason of any such damage, interference or obstruction:

Provided that nothing in this paragraph shall impose any liability on the Council with respect to any damage, costs, expenses or loss which is attributable to the act, neglect or default of the railways board or their servants, contractors or agents:

- (10) The Council shall at all times afford reasonable facilities to the railways engineer for access to the specified works during their construction and shall ensure access for the railways engineer at all reasonable times to all working sites, depots and works at which materials employed in the construction of the specified works are being made, constructed or assembled and shall supply him with all such information as he may reasonably require with regard to the specified works or the method of construction thereof:
- (11) The railways board shall at all times afford reasonable facilities to the Council and their agents for access to any works carried out by the railways board under this Part of this Schedule during their construction and shall supply the Council with such information as they may reasonably require with regard to such works or the method of construction thereof:
- (12) If any alterations or additions either permanent or temporary to railway property shall be reasonably necessary during the construction of the specified works, or during a period of twelve months after the completion thereof, in consequence of the construction of the specified works, such alterations and additions may be effected by the railways board after notice has been given to the Council and the Council shall pay to the railways board on demand the cost thereof as certified by the railways engineer including in respect of permanent

SCH. 2
— cont.

alterations and additions a capitalised sum representing the increased or additional cost of maintaining, working and when necessary renewing any such alterations or additions:

Provided that if the cost of maintaining, working or renewing railway property is reduced in consequence of any such alterations or additions a capitalised sum representing that reduction shall be set off against any sum payable by the Council to the railways board under this paragraph:

- (13) The Council shall repay to the railways board all costs, charges and expenses reasonably incurred by the railways board—

(a) in constructing any part of the specified works on behalf of the Council as provided by paragraph (6) of this Part of this Schedule or in constructing any protective works under the provisions of paragraph (7) of this Part of this Schedule including in respect of any permanent protective works a capitalised sum representing the cost of maintaining and renewing such works;

(b) in respect of the employment of any inspectors, signalmen, watchmen and other persons whom it shall be reasonably necessary to appoint for inspecting, watching, lighting and signalling railway property and for preventing as far as may be reasonably practicable all interference, obstruction, danger or accident arising from the construction, maintenance, repair or failure of the specified works;

(c) in respect of any special traffic working resulting from any speed restrictions which are necessary as a result of the construction, maintenance, repair or failure of the specified works and which may in the opinion of the railways engineer be required to be imposed or from the substitution, diversion or suspension of train services which may be necessary for the same reason;

(d) in respect of any additional temporary lighting of railway property in the vicinity of the specified works being lighting made reasonably necessary as a result of the specified works or the failure thereof;

(e) in respect of the approval by the railways engineer of plans submitted by the Council and the supervision by him of the specified works:

- (14) If at any time after the completion of the specified works, not being works vested in the railways board, the railways board shall give notice to the Council informing them that the state of repair of the specified works appears to be such as to affect prejudicially railway property, the Council shall, upon receipt of such notice, take such steps (if any) as may be reasonably necessary to prevent the railway property in question from being so affected and if and whenever the Council fail to do so, and at any time in case of emergency (without being required to give prior notice to the Council as aforesaid), the railways board may make and do in and upon the lands of the railways

SCH. 2
—cont.

board or of the Council all such works and things as shall be requisite to prevent the railway property in question from being so affected and the costs and expenses reasonably incurred by the railways board in so doing shall be repaid to them by the Council:

- (15) All temporary structures, erections, works, apparatus and appliances erected or placed by the Council under the powers of this Act upon, over or under any railway of the railways board shall as soon as reasonably practicable be removed by the Council to the reasonable satisfaction of the railways engineer and in such a way as to cause as little damage to railway property and as little interference with, or interruption to, the traffic on the railways of the railways board as may be and if any damage to railway property or such interference, delay or interruption shall be caused by any such failure to remove any such temporary structures, erections, works, apparatus or appliances the Council shall forthwith make good such damage and pay to the railways board the reasonable costs and expenses to which they may be put and reasonable compensation for any loss which they may sustain by reason of such damage, interference, delay or interruption:
- (16) If it shall be necessary for the protection and safety of railway property for the railways board to purchase any minerals for the support of such property or to pay compensation for any minerals left unworked for the support thereof and the specified works also derive support from such minerals the Council shall repay to the railways board a reasonable proportion of the amount paid by the railways board for or in respect of such minerals and the costs and expenses incurred by the railways board in relation to any such purchase or payment of compensation:
- (17) Before providing any illumination or illuminated road traffic sign on or in connection with the specified works or in the vicinity of any railway of the railways board the Council shall consult with the railways board and comply with any reasonable requirements of the railways board in regard thereto with a view to ensuring that such illumination or illuminated sign could not be confused with any railway signal or other light used for controlling, directing or securing the safety of traffic on the railway:
- (18) The Council shall be responsible for and make good to the railways board all costs, charges, damages and expenses not otherwise provided for in this Part of this Schedule which may be occasioned to or reasonably incurred by the railways board—
- (a) by reason of the specified works or the failure thereof;
 - or
 - (b) by reason of any act or omission of the Council or of any persons in their employ or of their contractors or others whilst engaged upon the specified works;

SCH. 2
—cont.

and the Council shall effectively indemnify and hold harmless the railways board from and against all claims and demands arising out of or in connection with the specified works or any such failure, act or omission as aforesaid and the fact that any act or thing may have been done by the railways board on behalf of the Council or in accordance with any requirement of the railways engineer or under his supervision shall not (if it was done without negligence on the part of the railways board or of any person in their employ or of their contractors or agents) excuse the Council from any liability under the provisions of this Part of this Schedule:

Provided that the railways board shall give to the Council reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Council:

- (19) Any difference arising between the Council and the railways board under this Part of this Schedule (other than a difference as to the meaning or construction of this Part of this Schedule) shall be referred to and settled by arbitration.

PART 4

FOR PROTECTION OF IMPERIAL CHEMICAL INDUSTRIES LIMITED AND
PHILLIPS-IMPERIAL PETROLEUM LIMITED

For the protection of ICI and PIP the following provisions of this Part of this Schedule shall, unless otherwise agreed in writing between the Council and ICI or PIP (as the case may be), apply and have effect:—

- (1) In this Part of this Schedule—

“the authorised works” means the bridge and the works subsidiary or incidental thereto authorised by this Act and includes the maintenance, repair and renewal thereof;

“the bridge” means the bridge forming part of Work No. 1 authorised by this Act;

“the engineer” means an engineer to be appointed by ICI and PIP;

“ICI” means Imperial Chemical Industries Limited;

“the pink land” means the land coloured pink on the signed plan;

“PIP” means Phillips-Imperial Petroleum Limited;

“the sidings” means the sidings serving the road/rail tanker filling depot in the borough of Stockton-on-Tees belonging to PIP;

“the signed plan” means the plan which has been signed in quintuplicate by the Right Honourable the Earl of Listowel, the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred, of which

plan one copy has been deposited in the office of the Clerk of the Parliaments, House of Lords, one copy in the Private Bill Office of the House of Commons, one copy in the offices of the Council, one copy in the registered office of ICI and one copy in the registered office of PIP:

- (2) The Council shall not under the powers of this Act acquire compulsorily any part of the pink land but the Council may acquire such easements and rights in or over the pink land as they may reasonably require for the purposes of or in connection with the authorised works:
- (3) (a) The bridge shall be carried over the pink land and shall have at all times a clear headroom throughout of not less than 5.1 metres above the upper surface of the existing lines of rails comprising the sidings and openings sufficient to span the pink land;
(b) The parapets of the bridge shall at all times be of solid construction with no openings therein and not less than 1.5 metres in height above the carriageway of the approach road on the bridge:
- (4) The Council shall before commencing the authorised works (other than works of maintenance and repair) furnish to ICI and PIP plans, sections, drawings and particulars thereof for the approval of the engineer (which approval shall not be unreasonably withheld) and shall not commence the works until such plans, sections, drawings and particulars shall have been approved by the engineer or, in case of difference between the engineer and the Council, until they shall have been settled by arbitration:
Provided that if within two months after such plans, sections, drawings and particulars have been furnished to ICI and PIP the engineer shall not have intimated his approval or disapproval thereof he shall be deemed to have approved them:
- (5) Upon signifying his approval or disapproval of the plans, sections, drawings and particulars the engineer may specify any temporary or permanent works which should be carried out before the commencement of the authorised works in order to ensure the stability of the sidings or to protect them from injury and such temporary or permanent works as may be reasonably necessary for those purposes shall be constructed by PIP with all reasonable dispatch and the Council shall not commence the construction of the authorised works until the engineer shall have notified the Council that such temporary or permanent works have been completed:
- (6) The Council shall except in cases of emergency give to the engineer twenty-eight days' notice of their intention to commence any of the authorised works:
- (7) The authorised works shall when commenced be carried out with all reasonable dispatch in accordance with the approved

SCH. 2
—cont.

plans and under the supervision (if given) and to the reasonable satisfaction of the engineer and in such manner as to cause as little damage to property belonging to ICI and PIP and as little interference with or delay or interruption to the conduct of traffic on the sidings as may be and if any damage to any such property or any such interference, delay or interruption shall be caused or take place contrary to this paragraph the Council shall notwithstanding any such approval as aforesaid forthwith make good such damage and pay to ICI or PIP (as the case may be) the reasonable costs and expenses to which they may be put and reasonable compensation for any loss which they may sustain by reason of any such damage, interference, delay or interruption:

Provided that nothing in this paragraph shall impose any liability on the Council with respect to any damage or interruption to the extent that such damage or interruption is attributable to the act, neglect or default of ICI or PIP or their respective officers, servants, contractors or other agents:

- (8) The Council shall at all times afford reasonable facilities to the engineer for access to the authorised works during their construction and shall supply him with all such information as he may reasonably require with regard to the works or the method of construction thereof:

And ICI and PIP shall afford the like facilities and supply the like information in relation to any works to be constructed under paragraph (5) above:

- (9) The Council shall repay to PIP all additional costs, charges and expenses reasonably incurred by PIP in connection with the authorised works—

(a) in respect of the construction by PIP of any temporary or permanent works under the provisions of paragraph (5) above;

(b) in respect of the employment of any inspectors, signalmen, watchmen and other persons whom it may be reasonably necessary to appoint for inspecting, signalling, watching and lighting the sidings and for preventing as far as may be reasonably practicable any interference, obstruction, danger or accident arising from the authorised works; and

(c) in lighting the sidings in the vicinity of the authorised works:

- (10) The Council shall be responsible for and make good to ICI and PIP all costs, charges, damages and expenses not otherwise provided for in this Part of this Schedule which may be occasioned to ICI and PIP—

(a) by reason of the authorised works or the failure thereof; or

(b) by reason of any act or omission of the Council or of any persons in their employ or of their contractors whilst engaged upon the authorised works;

and the Council shall effectively indemnify and hold harmless ICI and PIP from and against all claims or demands arising out of or in connection with the authorised works or any such failure or act or omission as aforesaid and the fact that any work or thing may have been done in accordance with any plan, section, drawings or particulars approved by the engineer or in accordance with any requirement of the engineer or under his supervision shall not (if it was done without negligence on the part of ICI or PIP or of any person in their employ or of their contractors) excuse the Council from any liability under the provisions of this Part of this Schedule:

Provided that ICI or PIP (as the case may be) shall give to the Council reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the agreement of the Council:

- (11) Any dispute or difference arising between the Council and ICI or PIP (as the case may be) or the engineer under any of the foregoing provisions of this Part of this Schedule shall be settled by arbitration.

PART 5

FOR PROTECTION OF THE NORTHUMBRIAN WATER AUTHORITY, THE NORTH EASTERN ELECTRICITY BOARD AND THE CENTRAL ELECTRICITY GENERATING BOARD

For the protection of the undertakers the provisions of this Part of this Schedule shall, unless otherwise agreed in writing between the Council and the undertakers concerned, apply and have effect:—

- (1) In this Part of this Schedule, unless the subject or context otherwise requires—

“ apparatus ” means—

(a) in relation to the water authority, sewers, drains, water mains, pipes, valves, hydrants, stopcocks, pumping equipment and other apparatus belonging to, or maintained by, the water authority;

(b) in relation to the electricity board and the generating board, electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to, or 1882 c. 56. maintained by, such undertakers;

and includes any works constructed for the lodging therein of apparatus;

“ undertakers ” means the water authority, the electricity board, the generating board or any of them:

- (2) Notwithstanding anything in section 38 (No sewers, mains or pipes to be laid in tunnel or tunnel approaches) of this Act, the consent of the Council shall not be required under that section for the laying down or erection by the undertakers,

SCH. 2
—cont.

- otherwise than in, over or under the tunnel of any apparatus by way of renewal of any apparatus for the time being vested in or belonging to them:
- (3) The consent of the Council under the said section 38 shall not be unreasonably refused, and shall not include a condition requiring any payment to be made by the undertakers to the Council in respect of the exercise of the powers to the exercise of which the consent is given except any payment in respect of works carried out by or services provided by the Council at the request of, or by arrangement with, the undertakers:
 - (4) Where any apparatus in respect of which the consent of the Council is required under the said section 38 is to be laid down or erected along a line crossing the route of any part of the tunnel or tunnel approaches to which the section applies but not running along that route the Council—
 - (a) shall not withhold their consent under that section unless there are special reasons for doing so; and
 - (b) may, if they give their consent subject to conditions, make contributions to the undertakers in respect of any additional expenses incurred by them in complying therewith:
 - (5) Any dispute between the Council and the undertakers in respect of—
 - (a) the withholding of the consent of the Council in respect of apparatus to be laid down or erected as mentioned in the said section 38; or
 - (b) the imposition of any condition on the grant of such consent;
 shall be determined by arbitration.

PART 5A

FOR THE FURTHER PROTECTION OF THE NORTHUMBRIAN WATER AUTHORITY, THE NORTH EASTERN ELECTRICITY BOARD AND THE CENTRAL ELECTRICITY GENERATING BOARD

For the further protection of the undertakers the provisions of this Part of this Schedule shall, unless otherwise agreed in writing between the Council and the undertakers concerned, apply and have effect:—

- (1) In this Part of this Schedule unless the subject or context otherwise requires—

“the Act of 1950” means the Public Utilities Street Works Act 1950;

“adequate alternative apparatus” means alternative apparatus adequate to enable the undertakers to fulfil their statutory functions in a manner not less efficient than previously;

“apparatus” has the same meaning as in Part 5 of this Schedule;

SCH. 2
—cont.

“in” in a context referring to apparatus includes under, over, across, along or upon;

“position” includes depth;

“the undertakers” has the same meaning as in Part 5 of this Schedule:

- (2) Notwithstanding anything in this Act or shown on the deposited plan the Council shall not acquire any apparatus under the powers of this Act otherwise than by agreement:
- (3) The provisions of the Act of 1950 as extended by section 39 (Application of Public Utilities Street Works Act 1950) of 1950 c. 39. this Act shall not regulate the relations between the Council and the undertakers in respect of any matter or thing concerning which those relations are regulated in any respect by the following provisions of this Part of this Schedule:
- (4) Nothing in the following sections of this Act shall relieve the Council from liability for damage caused by them to any apparatus in the exercise of the powers of the said sections and the Council shall so exercise those powers as not to obstruct or render less convenient (so far as is reasonably practicable) the access to any apparatus:—
 - Section 13 (Power to construct works);
 - Section 15 (Subsidiary works);
 - Section 16 (Subsidiary works affecting river);
 - Section 24 (Underpinning of houses and buildings near works);
 - Section 52 (Power to provide toll-houses, etc.):
- (5) If the Council in the exercise of any of the powers of this Act take possession temporarily of or acquire any interest in any land in which any apparatus is placed, that apparatus shall not be removed nor shall any rights of the undertakers to use, maintain, repair, renew or inspect any apparatus in that land be extinguished until adequate alternative apparatus has been provided and is in operation to the reasonable satisfaction of the undertakers:
- (6) If the Council, for the purpose of or in connection with the construction of any of the works in, on or under any land acquired, held, appropriated or used under this Act, require the permanent removal of any apparatus from that land they shall give to the undertakers written notice of such requirement with a plan and description, and where applicable a section, of the work proposed and of the proposed position of the alternative apparatus (if any) to be provided so as to provide adequate alternative apparatus in place of the apparatus to be removed:

SCH. 2
—cont.

- (7) If the Council require the undertakers to remove any apparatus permanently from any land under paragraph (6) above, or if in consequence of the exercise of any of the powers of this Act the undertakers reasonably require to remove any apparatus, the Council shall afford to the undertakers the necessary facilities and rights for the provision in other land of the Council of adequate alternative apparatus and thereafter for the maintenance, repair, renewal and inspection of such apparatus:

Provided that if the alternative apparatus, or any part thereof, is to be provided elsewhere than in other land of the Council and the Council are unable to afford such facilities and rights as aforesaid in the land in which the alternative apparatus or such part thereof is to be provided, the undertakers shall, on receipt of a written notice to that effect from the Council, forthwith use their best endeavours to obtain the necessary facilities and rights:

- (8) Any alternative apparatus to be provided in land of the Council in pursuance of paragraph (7) above shall be laid or constructed in such manner and in such line or position as may be agreed between the undertakers and the Council or in default of agreement settled by arbitration:
- (9) The undertakers shall, after the manner of laying or construction and the line and position of any alternative apparatus have been agreed or settled by arbitration as aforesaid and after the grant to the undertakers of any such facilities and rights as are referred to in paragraph (7) above, proceed with all reasonable dispatch to lay or construct and bring into operation the alternative apparatus and thereafter to remove any apparatus required by the Council to be removed under the provisions of this Part of this Schedule:
- (10) Notwithstanding anything in paragraph (9) above, if the Council give notice in writing to the undertakers that they desire themselves to execute any part of so much of the work necessary in connection with the provision of the alternative apparatus, or the removal of the apparatus required to be removed, as will be situate in any land of the Council, such work, instead of being executed by the undertakers shall, subject to the consent of the undertakers which shall not be unreasonably withheld, be executed by the Council with all reasonable dispatch under the superintendence (if given) and to the reasonable satisfaction of the undertakers:

Provided that nothing in this paragraph shall authorise the Council to carry out the placing, erection, construction, installation, bedding, packing, removal, connection or disconnection of any apparatus or any filling around such apparatus (where the apparatus is laid in a trench) within 30 centimetres above the apparatus:

SCH. 2
—cont.

- (11) Where in accordance with the provisions of this Part of this Schedule the Council afford to the undertakers facilities and rights in land of the Council for the laying or construction, maintenance, repair, renewal and inspection of alternative apparatus in substitution for apparatus to be removed as aforesaid, those facilities and rights shall be granted upon such terms and conditions as may be agreed between the Council and the undertakers or, in default of agreement, determined by arbitration:

Provided that—

(a) in determining such terms and conditions as aforesaid in respect of alternative apparatus (if any) to be laid or constructed in or through any of the works the arbitrator shall—

(i) give effect to all reasonable requirements of the Council for ensuring the safety and efficient use of the works and for securing any subsequent alterations or adaptations of the alternative apparatus which may be required to prevent interference with the works; and

(ii) so far as it may be reasonable and practicable to do so in the circumstances of the particular case, give effect to any terms and conditions applicable to the apparatus constructed through the land of the Council for which the alternative apparatus is to be substituted;

(b) if the facilities and rights to be afforded by the Council in respect of any alternative apparatus, and the terms and conditions subject to which the same are to be granted, are, in the opinion of the arbitrator, more or less favourable on the whole to the undertakers than the facilities, rights, terms and conditions applying to the apparatus to be removed, the arbitrator shall make such provision for the payment of compensation to or by the Council by or to the undertakers in respect thereof as shall appear to him to be reasonable having regard to all the circumstances of the particular case:

- (12) (a) Not less than twenty-eight days, or such other period as may be agreed between the Council and the undertakers, before commencing to carry out any works which are near to, or are likely to affect, any apparatus the removal of which has not been required by the Council under paragraph (6) above, the Council shall submit to the undertakers a plan and section and description of the works to be carried out;
- (b) Such works shall be carried out only in accordance with the plan, section and description submitted as aforesaid and in accordance with such reasonable requirements as may be made by the undertakers for the alteration or otherwise for the protection of the apparatus or for securing access thereto and the undertakers shall be entitled by their officers to watch and inspect the carrying out of such works:

SCH. 2
—cont.

Provided that—

(i) if the undertakers, within fourteen days after the submission to them of any such plan, section and description, shall, in consequence of the works proposed by the Council, reasonably require the removal of any apparatus and give written notice to the Council of such requirement the foregoing provisions of this Part of this Schedule shall apply and have effect as if the removal of such apparatus had been required by the Council under paragraph (6) above;

(ii) Nothing in this paragraph shall preclude the Council from submitting at any time, or from time to time, but in no case less than twenty-eight days, or such other period as may be agreed between the Council and the undertakers, before commencing the carrying out of the works, a new plan, section and description thereof instead of the plan, section and description previously submitted, and thereupon the provisions of this paragraph shall apply to, and in respect of, such new plan, section and description;

(c) The Council shall not be required to comply with sub-paragraph (a) of this paragraph in case of emergency but, in such a case, they shall give notice to the undertakers as soon as reasonably practicable and a plan, section and description of the works as soon as reasonably practicable thereafter, and shall comply with sub-paragraph (b) of this paragraph so far as reasonably practicable in the circumstances:

(13) If in consequence of the exercise of the powers of this Act the access to any apparatus the removal of which is not required under this Part of this Schedule is materially impeded the Council shall provide alternative means of access to such apparatus:

(14) The Council shall repay to the undertakers the reasonable expenses incurred by the undertakers in, or in connection with—

(a) the removal and relaying or replacing, alteration or protection of any apparatus and the provision, laying, construction or placing of any new apparatus under any of the provisions of this Part of this Schedule;

(b) the cutting off of any apparatus from any other apparatus; and

(c) any other work or thing rendered reasonably necessary in consequence of the exercise by the Council of any of the powers of this Act:

Provided that subsections (3) and (4) of section 23 of the Act of 1950 (which imposes limitations on undertakers' rights to payment) shall, so far as applicable, extend and apply to any payment to be made under this paragraph as if the works in respect of which the payment is to be made were such undertakers' works as are referred to in the said subsection (3) and as if in that subsection for the words "specified

as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act" there were substituted the words "agreed or settled by arbitration under Part 5A (For the further protection of the Northumbrian Water Authority, the North Eastern Electricity Board and the Central Electricity Generating Board) of Schedule 2 to the Tees Tunnel Act 1976":

SCH. 2
—cont.

- (15) Notwithstanding the stopping up temporarily or permanently of any street, or part of a street, under the powers of section 22 (Permanent stopping up of streets without providing substitutes) or section 23 (Temporary stoppage of streets, streams and watercourses) of this Act, the closing of the tunnel approaches or any part thereof under the powers of section 35 (Power to prevent access to or egress from tunnel approaches) or section 36 (Closing of works) of this Act, or any byelaw made under section 57 (Byelaws) of this Act, the undertakers, their engineers or workmen and others in their employ shall at all reasonable times have such right of access with any necessary vehicles to all or any apparatus in any such street or the tunnel approaches or part thereof as they had immediately before such stopping up or closing or the making of such byelaw and shall be at liberty at all times to execute and do all such works and things in, upon or under such street or the tunnel approaches or part thereof as may be reasonably necessary for inspecting, repairing, maintaining, renewing, replacing or removing such apparatus:
- (16) Notwithstanding anything in section 28 (Power to pump water and use sewers for removing water) of this Act, no use shall be made by the Council in the construction of the works of pumping or other like modes of removing water found by them except where reasonably necessary or in the case of emergency or unforeseen accident or for the purpose of removing rainwater or other small amounts of water, and the provisions of section 26 of the Act of 1950 shall apply to, and in relation to, the laying down, taking up or altering of conduits, pipes or other works and conveniences for the purpose of pumping water found by the Council under the said section 28 as if executed by the Council as operating undertakers within the meaning of section 26 of the Act of 1950:
- (17) If by reason or in consequence of the construction, user or failure of any of the works, or any subsidence resulting therefrom, any damage to any apparatus (other than apparatus the repair of which is not reasonably necessary in view of its intended removal or abandonment) or property of the undertakers or any interruption in the supply of water or electricity shall be caused, the Council shall bear and pay the cost reasonably incurred by the undertakers in making good such damage or restoring the supply and shall—
- (a) make reasonable compensation to the undertakers for any loss sustained by them; and

SCH. 2
—cont.

(b) indemnify the undertakers against all claims, demands, proceedings, costs, damages and expenses which may be made or taken against or recovered from or incurred by the undertakers;

by reason or in consequence of any such damage or interruption:

Provided that—

(i) nothing in this paragraph shall impose any liability on the Council with respect to any damage or interruption to the extent that such damage or interruption is attributable to the act, neglect or default of the undertakers or their contractors or workmen;

(ii) the undertakers shall give to the Council reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent in writing of the Council:

- (18) The expenses of all repairs or renewals of any apparatus which may be rendered necessary by reason or in consequence of the construction or failure of the works or any subsidence resulting from the works shall be borne by the Council and paid by them to the undertakers:
- (19) The Council shall bear and pay any cost reasonably incurred by the undertakers in the reasonable employment of watchmen and inspectors during the execution of any works which will or may interfere with or affect any apparatus:
- (20) (a) Any difference arising between the Council and the undertakers under this Part of this Schedule shall be settled by arbitration;
- (b) In determining any difference under this Part of this Schedule the arbitrator shall have regard to any duty or obligation the undertakers may be under in respect of any apparatus and may if he thinks fit require the Council to carry out any temporary or other works so as to avoid, as far as may be reasonably possible, interference with the use of any apparatus.

PART 5B

FOR PROTECTION OF PUBLIC SEWERS

For the protection of the water authority the following provisions shall, unless otherwise agreed in writing between the Council and the water authority, apply and have effect:—

(1) In this Part of this Schedule—

“public sewer” has the same meaning as in the Public Health Act 1936;

“specified works” has the meaning assigned by paragraph (3) below:

(2) Wherever in this Part of this Schedule provision is made with respect to the approval of the water authority such approval shall be in writing, but shall not be unreasonably withheld:

SCH. 2
—cont.

(3) (a) Not less than fifty-six days before commencing the construction of any of the works the Council shall deliver to the water authority a map on a scale of not less than 6 inches to 1 mile showing the proposed work;

(b) The water authority shall within twenty-eight days from the receipt of any such map, by notice in writing to the Council, specify any public sewer affected by the proposed work in relation to which the submission of plans, sections and particulars of the work under paragraph (4) of this Part of this Schedule is required, and any works in relation to which it is agreed between the Council and the water authority or determined by arbitration that the submission of plans, sections and particulars as aforesaid is reasonably required shall be specified works for the purposes of this Part of this Schedule:

Provided that where any part of the works will or may be situated within 15 metres measured in any direction of any public sewer the submission of plans, sections and particulars as aforesaid shall be deemed to be reasonably required:

(4) The Council shall not commence the construction of the specified works until they have given to the water authority twenty-eight days' notice, or such other period as may be agreed between the Council and the water authority, in writing of their intention to commence the same together with plans as described in paragraph (10) of this Part of this Schedule (hereinafter referred to as "the said plans") for their reasonable approval, and until the water authority have signified their approval of the said plans:

Provided that, if within twenty-eight days' after the submission of the said plans the water authority have not approved or disapproved them, they shall be deemed to have approved the said plans as submitted:

(5) The Council shall comply with, and conform to, all reasonable orders, directions and regulations of the water authority in the construction of the said works and shall provide new, altered or substituted works in such manner as the water authority shall reasonably require for the protection of, and for preventing injury or impediment to, such sewer by reason of the specified works, and shall indemnify the water authority against expenses occasioned thereby:

(6) Such new, altered or substituted works shall, where so required by the water authority, be done by the water authority, or at the option of the water authority under the direction, superintendence and control of an officer of the water authority duly appointed for the purpose, at the cost of the Council, and the costs, charges and expenses reasonably incurred by the

SCH. 2
—cont.

water authority by reason of such works, whether in the execution thereof, or in the preparation or examination of plans or designs, or in such direction, superintendence or control as aforesaid, or otherwise, shall be repaid to the water authority by the Council:

- (7) When any such new, altered or substituted works or any protective work connected therewith shall be completed by, or at the cost of, the Council under the provisions of this Part of this Schedule, the same shall thereafter be as fully and completely under the direction, jurisdiction and control of the water authority as any sewers or works now or hereafter may be:
- (8) The water authority may require the Council, in constructing the specified works, to make any reasonable deviation within the limits of deviation from the line or levels shown upon the said plans for the purpose of avoiding injury or risk of injury to their public sewers, and the Council shall in constructing such works deviate accordingly:
- (9) It shall not be lawful for the Council in the exercise of the powers of section 11 (3) of the Compulsory Purchase Act 1965, as applied by this Act, to make any trial holes so as to interfere with any public sewer:
- (10) The plans to be submitted to the water authority for the purposes of this Part of this Schedule shall be detailed plans, drawings, sections and specifications which shall describe the exact position and manner in which, and the level at which, the specified works are proposed to be constructed and shall accurately describe the position of all public sewers within the limits of deviation (for which purpose the water authority shall allow the Council access to plans in their possession and to any of their sewers in order to enable the Council to obtain reliable information), and shall comprise detailed drawings of every alteration which the Council may propose to make in any such sewer:
- (11) The water authority may require such modifications to be made in the said plans as may be reasonably necessary to secure their main drainage system against interference or risk of damage and to provide and secure a proper and convenient means of access to the said sewers:
- (12) The Council shall be liable to make good, or, if the water authority so decide, to bear any expense reasonably incurred by the water authority in making good, injury or damage to any sewers, drains or works vested in the water authority caused by, or resulting from, the construction of the specified works:
- (13) If the Council, in the construction of the specified works, or any new, altered or substituted works, or any protective work connected therewith provided in accordance with this Part of

this Schedule, damage or, without the consent of the water authority, alter or in any way interfere with any existing public sewer, the Council shall—

SCH. 2
—cont.

(a) repay to the water authority any additional expense which may reasonably be incurred by the water authority in the maintenance, management or renewal of any new, altered or substituted sewer which may be necessary in consequence of the said construction; and

(b) give to the water authority full, free and uninterrupted access at all times to any such new, altered or substituted sewer and every reasonable facility for the inspection, maintenance, alteration and repair thereof:

- (14) It shall be lawful for an officer of the water authority duly appointed for the purpose at any reasonable time, on giving to the Council such notice as may in the circumstances be reasonable, to enter upon and inspect the specified works or any other works constructed under the powers of this Part of this Schedule:
- (15) If by reason or in consequence of the construction, user or failure of any of the works, or any subsidence resulting therefrom, any damage to any public sewer or property of the water authority shall be caused, the Council shall bear and pay the cost reasonably incurred by the water authority in making good such damage and shall indemnify the water authority against all claims, demands, proceedings, costs, damages and expenses which may be made or taken against or recovered from or incurred by them by reason or in consequence of any such damage:

Provided that—

(i) nothing in this Part of this Schedule shall impose any liability on the Council with respect to any damage to the extent that such damage is attributable to the act, neglect or default of the water authority or their contractors or workmen;

(ii) the water authority shall give to the Council reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent in writing of the Council:

- (16) The approval by the water authority of any plans, or the superintendence by them of any work, under the provisions of this Part of this Schedule shall not exonerate the Council from any liability, or affect any claim for damages, under this Part of this Schedule or otherwise:
- (17) Any difference arising between the Council and the water authority under this Part of this Schedule shall be determined by arbitration.

SCH. 2
—cont.

PART 5C

FOR PROTECTION OF WATERCOURSES AND LAND DRAINAGE

For the protection of the water authority the following provisions shall, unless otherwise agreed in writing between the Council and the water authority, apply and have effect:—

(1) In this Part of this Schedule—

“plans” includes sections, drawings and specifications and reference to the plans of any work includes plans of any dredging or other operations to be carried out under section 29 (Dredging) of this Act for the purposes of that work;

“protected watercourse” means any watercourse for the time being vested in, or under the control of, the water authority and includes the river;

“sea defence work” means a river wall or defence work for the time being vested in, or under the control of the water authority for the purposes of their land drainage functions;

“specified work” means any work which will affect any protected watercourse or the flow of water to or from any protected watercourse:

(2) In the execution of any specified work the Council shall not diminish the width between the banks of any protected watercourse except with the consent of the water authority, but such consent shall not be unreasonably withheld:

(3) Except with the consent of the water authority, which shall not be unreasonably withheld, the Council shall not execute any work of maintenance or repair of any specified work which affects any protected watercourse otherwise than—

(a) in such manner across the watercourse as to allow the free passage under the specified work of flood waters;

(b) in such manner as not to obstruct or interfere with the free flow of water in, into or out of the watercourse:

(4) (a) The Council, before commencing the execution of any specified work, shall submit to the water authority plans thereof for their reasonable approval which approval may be given with or without conditions:

Provided that if the water authority do not, within fifty-six days or such other period as may be agreed between the Council and the water authority after the submission to them of any plans under this sub-paragraph, signify to the Council in writing their disapproval thereof, they shall be deemed to have approved thereof unconditionally;

(b) A specified work and any dredging or other operation to be carried out under the said section 29 for the purposes thereof shall not be executed or carried out otherwise than in accordance with such plans as may be approved (or are to be deemed

to be approved) by the water authority or, if the water authority have signified their disapproval thereof, as may be settled by arbitration, and shall be executed or carried out to the reasonable satisfaction of the water authority:

SCH. 2
—cont.

- (5) (a) Plans of any tidal work shall not be submitted by the Council to the Secretary of State for his approval under section 19 (Tidal works not to be executed without approval of Secretary of State) of this Act until copies of those plans have been supplied to the water authority not less than twenty-eight days, or such other period as may be agreed between the Council and the water authority, before the submission to the Secretary of State and if on the submission of the plans to the Secretary of State the Secretary of State requires any alteration of the plans or of any conditions relating thereto, the Council shall, not less than twenty-eight days, or such other period as may be agreed between the Council and the water authority before commencing the work, inform the water authority of any such alteration;
- (b) Subject to compliance with sub-paragraph (a) of this paragraph, in the event of any inconsistency between the plans of any work approved, or deemed to be approved, by the water authority or settled by arbitration under the provisions of this Part of this Schedule or any conditions relating thereto and the plans of that work approved by the Secretary of State under the said section 19 or any conditions or restrictions imposed by him under that section, the Council shall be deemed to comply with paragraph (4) (b) of this Part of this Schedule if they construct the work in accordance with the plans so approved by the Secretary of State and in compliance with the conditions or restrictions imposed by him:
- (6) (a) Not less than seven days, or such other period as may be agreed between the Council and the water authority, before commencing any dredging or other operation authorised by section 29 (Dredging) of this Act, not being an operation of which a plan is submitted under this Part of this Schedule, the Council shall supply to the water authority a plan defining the nature, extent and manner of the operation and particulars as to the place and manner of disposal of materials dredged in the course of the operation;
- (b) An operation to which sub-paragraph (a) of this paragraph applies shall not be carried out otherwise than in accordance with such plan and in such manner as may be approved by the water authority (with or without conditions) or in the event of difference arising between the Council and the water authority, as may be settled by arbitration;
- (c) In the event of any inconsistency between any plan approved by the water authority or settled by arbitration under this paragraph or any conditions relating thereto and any condition, restriction or regulation of the Secretary of State imposed under section 29 (Dredging) of this Act, the Council

SCH. 2
—cont.

shall be deemed to have complied with sub-paragraph (b) of this paragraph if they have complied with that condition, restriction or regulation of the Secretary of State;

- (d) The Council shall not be required to comply with sub-paragraph (a) of this paragraph in a case of emergency but in such a case they shall give to the water authority notice as soon as reasonably practicable and a plan defining the nature and extent of the operation as soon as reasonably practicable thereafter, and shall comply with sub-paragraph (b) of this paragraph so far as reasonably practicable in the circumstances:
- (7) Without prejudice to the generality of any reference in the foregoing provisions of this Part of this Schedule to the giving of a conditional approval to any plans submitted under this Part of this Schedule, the water authority may attach to their approval such conditions (including conditions requiring the construction of protective works by, and at the expense of, the Council during the construction of any works or the carrying out of a dredging operation) as are reasonably necessary to safeguard a sea defence work or watercourse against damage or to secure that the efficiency of a watercourse for land drainage purposes is not impaired:
- (8) (a) If, by reason of the construction of any specified work or the carrying out of any dredging operation, a sea defence work is interfered with, or the efficiency of a watercourse for land drainage purposes is impaired, the water authority may after giving notice in writing to the Council (except in case of emergency when notice shall be given as soon as reasonably practicable)—
- (i) make good the sea defence work or watercourse to restore it to its former standard of efficiency; or
 - (ii) where necessary, construct some other work in substitution therefor;
- and may recover from the Council the reasonable cost of so doing;
- (b) For the purposes of this Part of this Schedule such cost shall include a proper proportion of the overhead charges of the water authority:
- (9) If the water authority have reasonable ground for believing that a sea defence work or watercourse is likely to be damaged, or the efficiency of a watercourse for land drainage purposes is likely to be impaired, in any of the circumstances mentioned in the last foregoing paragraph, they may carry out such protective works as may be agreed between the water authority and the Council or as, failing agreement, may be settled by arbitration, and may recover the reasonable cost thereof (including a proper proportion of the overhead charges of the water authority) from the Council:

SCH. 2
—cont.

- (10) The Council shall at all reasonable times afford to an engineer appointed by the water authority, or his duly authorised representatives, access to any specified work during the construction, maintenance or repair thereof for the purpose of inspection:
- (11) The construction, maintenance or repair of any specified work shall when commenced be continued with all reasonable diligence and without unreasonable delay until completion:
- (12) If by reason of the construction of any specified work or of the failure or abandonment thereof the channel or banks of any protected watercourse shall at any time be injured, such injury shall be made good by the Council to the reasonable satisfaction of the water authority, and if the Council fail to do so the water authority may make good the same and recover the reasonable cost thereof from the Council:
- (13) If by virtue of anything done by the Council to any protected watercourse or part of any such watercourse the free passage of water in any other watercourse in occupation or ownership of the water authority is affected, the Council shall, where so required by the water authority to do so, take such action under the direction and superintendence of an engineer appointed by the water authority to ensure the free passage of the water in such other watercourse at the cost of the Council, and all reasonable expenses to which the water authority shall be put by reason of such action, whether in the execution of works, the preparation or examination of plans or designs, superintendence or otherwise, shall be paid to the water authority by the Council:
- (14) Any difference arising between the Council and the water authority under this Part of this Schedule shall be settled by arbitration.

PART 6

FOR PROTECTION OF THE POST OFFICE

For the protection of the Post Office the following provisions shall, unless otherwise agreed in writing between the Council and the Post Office, apply and have effect:—

- (1) (a) As soon as practicable after the whole or any part of a street has been stopped up in pursuance of the provisions of section 22 (Permanent stopping up of streets without providing substitutes) of this Act the Council shall send by post to the Post Office a notice informing it of such stopping up;
- (b) Where the whole or any part of a street has been so stopped up the following provisions of this paragraph shall, unless otherwise agreed in writing between the Council and the Post Office, have effect in relation to so much of any telegraphic line belonging to or used by the Post Office as is under, in,

SCH. 2
—cont.

upon, over, along or across the land which by reason of the stopping up ceases to be a street (in this paragraph referred to as “the affected line”):—

(i) the power of the Post Office to remove the affected line shall be exercisable notwithstanding the stopping up so however that the said power shall not be exercisable as respects the whole or any part of the affected line after the expiration of a period of six months from the date of the sending of the notice referred to in sub-paragraph (a) of this paragraph;

(ii) the Post Office may by notice in that behalf to the Council abandon the affected line or any part thereof and shall be deemed as respects the affected line or any part thereof to have abandoned it at the expiration of the said period of six months unless before the expiration of that period the Post Office has removed it;

(iii) the Post Office shall be entitled to recover from the Council the expense of providing in substitution for the affected line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the affected line a telegraphic line in such other place as it may require;

(iv) where under sub-paragraph (b) (ii) of this paragraph the Post Office has abandoned the whole or any part of the affected line it shall vest in the Council and the provisions of the Telegraph Acts 1863 to 1916 shall not apply in relation to it as respects anything done or omitted after the abandonment thereof:

- (2) The exercise of the powers conferred by section 23 (Temporary stoppage of streets, streams and watercourses) of this Act in relation to a street shall not affect the powers of the Post Office under the Telegraph Acts 1863 to 1916 to maintain, inspect, repair, renew or remove telegraphic lines or to break up that street for any of those purposes:
- (3) The powers conferred by section 24 (Underpinning of houses and buildings near works) of this Act shall be so exercised as not to obstruct or render less convenient, so far as is reasonably practicable, the access to any telegraphic line belonging to or used by the Post Office:
- (4) Notwithstanding anything in section 27 (Alteration of position of water, gas and other pipes) of this Act the Council shall not alter (as defined in the Telegraph Act 1878) any telegraphic line except in accordance with and subject to the provisions of paragraphs (1) to (8) of section 7 of the Telegraph Act 1878:
- (5) Notwithstanding the erection by the Council of any walls, fences, barriers or notices under section 35 (Power to prevent access to or egress from tunnel approaches) of this Act the Post Office, its servants and agents shall be at liberty at all

times to enter the tunnel approaches with any necessary vehicles for the purpose of (a) maintaining, inspecting, repairing, renewing or removing any telegraphic line belonging to or used by the Post Office or (b) placing a telegraphic line, and the Council shall at all times afford to the Post Office, its servants and agents such entry for any of the aforesaid purposes.

SCH. 2
—cont.

PART 7

FOR PROTECTION OF TEES AND HARTLEPOOL PORT AUTHORITY

For the protection of the port authority the following provisions shall have effect unless otherwise agreed between the Council and the port authority:—

- (1) Any reference in this Part of this Schedule to a work shall be construed as a reference to that work during the construction and after the completion thereof and in this Schedule “construction” includes execution, placing, maintenance, or removal:
- (2) For the purpose of securing that traffic or navigation in or the flow or regime of the river or the bed, banks or shores thereof shall not be interfered with more than is reasonably necessary and of securing the safety of persons using the same the works shall be maintained to the reasonable satisfaction of the port authority:
- (3) Subject to paragraph (6) of this Part of this Schedule, where in pursuance of the provisions of sections 13 to 17, 19, 23, 25 to 29 or 40 of this Act or any of them or in the event of the collapse of or damage to any of the works—
 - (a) the port authority incur any expenditure in rectifying damage to or interference with or in taking such reasonable measures as in the opinion of the port authority are necessary to protect the bed, shores or banks of the river or to remedy any scouring or silting up of the river or to alter the marking or lighting of the river;
 - (b) the port authority sustain any costs, charges, damages, expenses, losses, injury or loss of revenue, attributable to the exercise of those powers or any of them or to such collapse or damage as aforesaid, or by reason of any act, neglect, failure or default by the Council or by their servants or agents in connection with or by reason or in consequence of, the construction of any of the works;

the Council shall pay to the port authority an amount equal to that expenditure or those costs, charges, damages, expenses, losses, injury or loss of revenue, which amount shall be a debt due forthwith from the Council to the port authority and recoverable as such and the Council shall indemnify the port authority and their officers and servants against claims, demands and costs of third parties arising thereunder:

SCH. 2
—cont.

- (4) Any act or thing which may have been done by the Council or by any officer, servant or agent of the Council under the provisions of this Act in accordance with any approval, licence or consent (with or without terms and conditions) granted by the port authority or the Secretary of State under the Tees and Hartlepool Port Authority Acts and Orders 1966 to 1974 or any other enactment or under the direction or supervision of any officer, servant or agent of the port authority shall not excuse the Council from any liability under the provisions of paragraph (3) of this Part of this Schedule and the Council shall effectively indemnify and hold harmless the port authority from and against all claims and demands arising out of or in connection with any act or thing which may have been done as aforesaid:
- (5) The port authority shall give to the Council reasonable notice of any claim or demand made by a third party in respect of which the port authority propose, pursuant to the provisions of paragraph (3) of this Part of this Schedule, to seek an indemnity from the Council and no settlement or compromise thereof shall be made without the prior consent of the Council:
- (6) The port authority shall in no way be responsible or answerable for any damage or injury to the tunnel or to the works or to any vehicle, cycle, person, goods or things in or using or being conveyed along the tunnel or any persons employed on or in connection with the tunnel caused by or attributable to—
- (a) any operations carried out by them in accordance with the provisions of paragraph (a) of subsection (1) of section 56 (Action by port authority to protect tunnel) of this Act;
 - (b) any act or thing done by any person in contravention of measures taken by the port authority under the provisions of paragraph (b) of subsection (1) of section 56 (Action by port authority to protect tunnel) of this Act or otherwise:
- Provided that such damage or injury was not caused or due—
- (i) where sub-paragraph (a) of this paragraph applies, to any negligent act, failure or default by the port authority, its officers or servants;
 - (ii) where sub-paragraph (b) of this paragraph applies, to any wilful or reckless act or default by the port authority, its officers or servants:
- (7) After the purpose for which temporary structures in the river necessary to enable the works to be constructed has been accomplished the Council shall with all reasonable dispatch or after a reasonable period of notice in writing from the port authority requiring them so to do remove any such temporary structures or any materials for the same which may have been placed in the river by the Council and on their failing so to do within a reasonable period after receiving such notice the port authority may remove the same, charging the Council with the reasonable expense of so doing and the Council shall repay to the port authority that expense:

- (8) The Council shall give notice in writing to the port authority of the placing or carrying of any main, pipe, cable, wire or other work or apparatus under the river by means of the tunnel: SCH. 2
—cont.
- (9) From the time when the construction of the works are commenced the Council shall proceed with the works with all reasonable diligence and without unreasonable delay until they are completed and all temporary works are removed from the river. If the work of construction has to be suspended the Council shall take all reasonable steps to ensure that the works shall be left in such a state that the interference with the flow of the river and with its navigation is no greater than would have resulted from the completed works:
- (10) The Council and any person duly authorised by them shall be entitled at any time after giving reasonable notice to the port authority to inspect and take copies (upon payment of a reasonable sum) of or extracts from all records relating to the works which may be in the possession of the port authority:
- (11) Any difference which may arise between the Council and the port authority under any of the provisions of this Part of this Schedule shall be referred to and determined by arbitration.

SCHEDULE 3

Section 8.

ADAPTATION OF PART I OF THE COMPULSORY PURCHASE ACT 1965

1. In the Compulsory Purchase Act 1965 (hereafter in this Schedule referred to as “the Act”) for section 7 (which relates to compensation) there shall be substituted the following:—

“7.—(1) In assessing the compensation to be paid by the Council under this Act regard shall be had not only to the extent, if any, to which the value of the land over which the easement or right is purchased is depreciated by the purchase but also to the damage, if any, to be sustained by the owner of the land by reason of injurious affection of other land of the owner by the exercise of the easement or right.

(2) The modifications subject to which subsection (1) of section 44 of the Land Compensation Act 1973 is to have effect, as applied by subsection (2) of that section to compensation for injurious affection under this section, are that for the words ‘land is acquired or taken’ there shall be substituted the words ‘an easement or a right over land is purchased’ and for the words ‘acquired or taken from him’ there shall be substituted the words ‘over which the easement or right is exercisable’.”

SCH. 3
—cont.

2. For section 8 of the Act (which relates to cases in which a vendor cannot be required to sell part only of a building or garden) there shall be substituted the following:—

“8.—(1) Where in consequence of the service on a person in pursuance of section 5 of this Act of a notice to treat in respect of an easement or a right over land consisting of a house, building or manufactory or of a park or garden belonging to a house (hereafter in this subsection referred to as ‘the relevant land’)—

(a) a question of disputed compensation in respect of the purchase of the easement or right would apart from this section fall to be determined by the Lands Tribunal (hereafter in this section referred to as ‘the Tribunal’); and

(b) before the Tribunal has determined that question the person satisfies the Tribunal that he has an interest which he is able and willing to sell in the whole of the relevant land and—

(i) where that land consists of a house, building or manufactory, that the easement or right cannot be purchased without material detriment to that land; or

(ii) where that land consists of such a park or garden, that the right cannot be purchased without seriously affecting the amenity or convenience of the house to which that land belongs;

the Tees Tunnel Act 1976 shall, in relation to that person, cease to authorise the purchase of the easement or right and be deemed to authorise the purchase of that person’s interest in the whole of the relevant land including, where the land consists of such a park or garden, the house to which it belongs, and the notice shall be deemed to have been served in respect of that interest on such date as the Tribunal directs.

(2) Any question as to the extent of the land in which the Tees Tunnel Act 1976 is deemed to authorise the purchase of an interest by virtue of the preceding subsection shall be determined by the Tribunal.

(3) Where, in consequence of a determination of the Tribunal that it is satisfied as mentioned in subsection (1) of this section, the Tees Tunnel Act 1976 is deemed by virtue of that subsection to authorise the purchase of an interest in land, the Council may, at any time within the period of six weeks beginning with the date of the determination, withdraw the notice to treat in consequence of which the determination was made; but nothing in this subsection prejudices any other power of the Council to withdraw the notice.

(4) The modifications subject to which subsection (1) of section 58 of the Land Compensation Act 1973 is to have effect, as applied by subsection (2) of that section to the duty of the Tribunal in determining whether it is satisfied as mentioned in

subsection (1) of this section, are that at the beginning of paragraphs (a) and (b) there shall be inserted the words 'an easement or a right over', for the word 'severance' there shall be substituted the words 'easement or right on the whole of the house, building or manufactory or of the house and the park or garden' and for the words 'part proposed' and 'part is' there shall be substituted respectively the words 'easement or right proposed' and 'easement or right is'."

3. The following provisions of the Act (which state the effect of a deed poll executed in various circumstances where there is no conveyance by persons with interests in the land), namely:—

Section 9 (4) (failure of owners to convey);

Paragraph 10 (3) of Schedule 1 (owners under incapacity);

Paragraph 2 (3) of Schedule 2 (absent and untraced owners); and

Paragraphs 2 (3) and 7 (2) of Schedule 4 (common land);

shall be so modified as to secure that, as against persons with interests in the land which are expressed to be overridden by the deed, the easement or right which is to be purchased compulsorily is vested absolutely in the Council.

4. Section 11 of the Act (powers of entry) shall be so modified as to secure that, as from the date on which the Council have served notice to treat in respect of any easement or right, they have power, exercisable in the like circumstances and subject to the like conditions, to enter for the purpose of exercising that easement or right (which shall be deemed for this purpose to have been created on the date of service of the notice); and sections 12 (penalty for unauthorised entry) and 13 (entry on sheriff's warrant in the event of obstruction) of the Act shall be modified correspondingly.

5. Section 20 of the Act (compensation for short term tenants) shall apply with the modifications necessary to secure that persons with such interests as are mentioned in that section are compensated in a manner corresponding to that in which they would be compensated on a compulsory acquisition of the interests but taking into account only the extent (if any) of such interference with such interests as is actually caused, or likely to be caused, by the exercise of the easement or right in question.

6. Section 22 of the Act (protection of acquiring authority's possession of land where by inadvertence an interest in the land has not been purchased) shall be so modified as to enable the Council, in circumstances corresponding to those referred to in that section, to continue to be entitled to exercise the easement or right in question, subject to compliance with that section as respects compensation.